

STATE OF NEW YORK

S. 3006--A

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SENATE - ASSEMBLY

January 22, 2025

IN SENATE -- A BUDGET BILL, submitted by the Governor pursuant to article seven of the Constitution -- read twice and ordered printed, and when printed to be committed to the Committee on Finance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

IN ASSEMBLY -- A BUDGET BILL, submitted by the Governor pursuant to article seven of the Constitution -- read once and referred to the Committee on Ways and Means -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to contracts for excellence; to amend the education law, in relation to foundation aid; to amend the education law, in relation to the establishment of a state-wide dual enrollment policy; to amend the education law, in relation to allowable transportation expenses; to amend the education law, in relation to universal pre-kindergarten and the Statewide universal full-day pre-kindergarten program; to amend the education law, in relation to state aid adjustments; to amend the education law, in relation to the apportionment of moneys for school aid; to amend chapter 756 of the laws of 1992 relating to funding a program for work force education conducted by the consortium for worker education in New York city, in relation to reimbursement for the 2025-2026 school year withholding a portion of employment preparation education aid and in relation to the effectiveness thereof; to amend the education law, in relation to maximum class sizes for special classes for certain students with disabilities; to amend chapter 82 of the laws of 1995 amending the education law and other laws relating to state aid to school districts and the appropriation of funds for the support of government, in relation to the effectiveness thereof; providing for special apportionment for salary expenses; providing for special apportionment for public pension accruals; providing for set-asides from the state funds which certain districts are receiving from the total foundation aid; providing for support of public libraries; and to repeal certain provisions of the education law relating to calculation of school aid (Part A); to amend the education law, in relation to establishing a universal free school meals program; and to repeal section 925 of the education law relating to the community eligibility

EXPLANATION--Matter in *italics* (underscored) is new; matter in brackets [] is old law to be omitted.

LBD12572-02-5

provision state subsidy (Part B); to amend the education law, in relation to student use of internet-enabled devices during the school day (Part C); to amend the education law in relation to scholarships awarded to part-time students by the New York state higher education services corporation; to amend the education law, in relation to making conforming changes; to repeal section 666 of the education law, relating to tuition awards for part-time undergraduate students; and to repeal section 667-c-1 of the education law relating to the New York state part-time scholarship award program (Part D); to amend the education law, in relation to excelsior scholarship awarded to students by the New York state higher education services corporation (Part E); to amend the education law, in relation to creating a New York opportunity promise scholarship (Part F); to amend the executive law and the state finance law, in relation to discriminatory practices by real estate appraisers and further fair housing compliance (Part G); to amend the general business law, in relation to prohibiting collusion through the use of algorithmic devices that enable landlords to unfairly artificially inflate rents or hold units vacant (Part H); to amend the general obligations law, in relation to extending existing security deposit protections to rent regulated tenants (Part I); to amend the real property actions and proceedings law, in relation to determining when a dwelling is abandoned (Part J); to amend the real property tax law, in relation to a tax exemption for residential real property transferred to a low-income household or community land trust (Part K); to amend the private housing finance law, in relation to reduction of taxes pursuant to shelter rent (Part L); to amend the real property tax law, in relation to the applicability of the residential redevelopment inhibited property exemption to all localities in the state (Part M); to utilize reserves in the mortgage insurance fund for various housing purposes (Part N); to amend part N of chapter 56 of the laws of 2020, amending the social services law relating to restructuring financing for residential school placements, in relation to the effectiveness thereof (Part O); to amend the social services law, in relation to certification of child care support centers to place substitute caregivers in licensed and registered child care programs (Part P); to amend the social services law, in relation to improving maternal and infancy health by increasing public assistance allowances to certain persons (Part Q); to amend the social services law, in relation to increasing the standards of monthly need for aged, blind and disabled persons living in the community (Part R); to amend part W of chapter 54 of the laws of 2016 amending the social services law relating to the powers and duties of the commissioner of social services relating to the appointment of a temporary operator, in relation to the effectiveness thereof (Part S); to amend the labor law, in relation to revising the healthy terminals act (Part T); to amend the labor law, in relation to limiting liquidated damages in certain frequency of pay violations (Part U); to amend the labor law, in relation to civil penalties for violations of certain provisions for the payment of wages (Part V); to amend the labor law and the penal law, in relation to the civil and criminal penalties for violations of child labor laws (Part W); to amend the labor law and the education law, in relation to digitizing the process by which minors apply for employment certificates or working papers; and to repeal certain provisions of the labor law relating thereto (Part X); to amend the veterans' services law, in relation to annuity to be paid to parents, spouses, and minor children of service members who died

while on active duty (Part Y); to amend the executive law, in relation to the requirements for filing a complaint with the division of human rights; and to amend the state finance law, in relation to establishing a discrimination complaints escrow fund (Part Z); and to require the submission of an annual report on the New York state museum (Part AA)

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act enacts into law major components of legislation
2 necessary to implement the state education, labor, housing and family
3 assistance budget for the 2025-2026 state fiscal year. Each component is
4 wholly contained within a Part identified as Parts A through AA. The
5 effective date for each particular provision contained within such Part
6 is set forth in the last section of such Part. Any provision in any
7 section contained within a Part, including the effective date of the
8 Part, which makes a reference to a section "of this act", when used in
9 connection with that particular component, shall be deemed to mean and
10 refer to the corresponding section of the Part in which it is found.
11 Section three of this act sets forth the general effective date of this
12 act.

13 PART A

14 Section 1. Paragraph e of subdivision 1 of section 211-d of the educa-
15 tion law, as amended by section 1 of part A of chapter 56 of the laws of
16 2024, is amended to read as follows:
17 e. Notwithstanding paragraphs a and b of this subdivision, a school
18 district that submitted a contract for excellence for the two thousand
19 eight--two thousand nine school year shall submit a contract for excel-
20 lence for the two thousand nine--two thousand ten school year in
21 conformity with the requirements of subparagraph (vi) of paragraph a of
22 subdivision two of this section unless all schools in the district are
23 identified as in good standing and provided further that, a school
24 district that submitted a contract for excellence for the two thousand
25 nine--two thousand ten school year, unless all schools in the district
26 are identified as in good standing, shall submit a contract for excel-
27 lence for the two thousand eleven--two thousand twelve school year which
28 shall, notwithstanding the requirements of subparagraph (vi) of para-
29 graph a of subdivision two of this section, provide for the expenditure
30 of an amount which shall be not less than the product of the amount
31 approved by the commissioner in the contract for excellence for the two
32 thousand nine--two thousand ten school year, multiplied by the
33 district's gap elimination adjustment percentage and provided further
34 that, a school district that submitted a contract for excellence for the
35 two thousand eleven--two thousand twelve school year, unless all schools
36 in the district are identified as in good standing, shall submit a
37 contract for excellence for the two thousand twelve--two thousand thir-
38 teen school year which shall, notwithstanding the requirements of
39 subparagraph (vi) of paragraph a of subdivision two of this section,
40 provide for the expenditure of an amount which shall be not less than
41 the amount approved by the commissioner in the contract for excellence
42 for the two thousand eleven--two thousand twelve school year and
43 provided further that, a school district that submitted a contract for

1 excellence for the two thousand twelve--two thousand thirteen school
2 year, unless all schools in the district are identified as in good
3 standing, shall submit a contract for excellence for the two thousand
4 thirteen--two thousand fourteen school year which shall, notwithstanding
5 the requirements of subparagraph (vi) of paragraph a of subdivision two
6 of this section, provide for the expenditure of an amount which shall be
7 not less than the amount approved by the commissioner in the contract
8 for excellence for the two thousand twelve--two thousand thirteen school
9 year and provided further that, a school district that submitted a
10 contract for excellence for the two thousand thirteen--two thousand
11 fourteen school year, unless all schools in the district are identified
12 as in good standing, shall submit a contract for excellence for the two
13 thousand fourteen--two thousand fifteen school year which shall,
14 notwithstanding the requirements of subparagraph (vi) of paragraph a of
15 subdivision two of this section, provide for the expenditure of an
16 amount which shall be not less than the amount approved by the commis-
17 sioner in the contract for excellence for the two thousand thirteen--two
18 thousand fourteen school year; and provided further that, a school
19 district that submitted a contract for excellence for the two thousand
20 fourteen--two thousand fifteen school year, unless all schools in the
21 district are identified as in good standing, shall submit a contract for
22 excellence for the two thousand fifteen--two thousand sixteen school
23 year which shall, notwithstanding the requirements of subparagraph (vi)
24 of paragraph a of subdivision two of this section, provide for the
25 expenditure of an amount which shall be not less than the amount
26 approved by the commissioner in the contract for excellence for the two
27 thousand fourteen--two thousand fifteen school year; and provided
28 further that a school district that submitted a contract for excellence
29 for the two thousand fifteen--two thousand sixteen school year, unless
30 all schools in the district are identified as in good standing, shall
31 submit a contract for excellence for the two thousand sixteen--two thou-
32 sand seventeen school year which shall, notwithstanding the requirements
33 of subparagraph (vi) of paragraph a of subdivision two of this section,
34 provide for the expenditure of an amount which shall be not less than
35 the amount approved by the commissioner in the contract for excellence
36 for the two thousand fifteen--two thousand sixteen school year; and
37 provided further that, a school district that submitted a contract for
38 excellence for the two thousand sixteen--two thousand seventeen school
39 year, unless all schools in the district are identified as in good
40 standing, shall submit a contract for excellence for the two thousand
41 seventeen--two thousand eighteen school year which shall, notwithstand-
42 ing the requirements of subparagraph (vi) of paragraph a of subdivision
43 two of this section, provide for the expenditure of an amount which
44 shall be not less than the amount approved by the commissioner in the
45 contract for excellence for the two thousand sixteen--two thousand
46 seventeen school year; and provided further that a school district that
47 submitted a contract for excellence for the two thousand seventeen--two
48 thousand eighteen school year, unless all schools in the district are
49 identified as in good standing, shall submit a contract for excellence
50 for the two thousand eighteen--two thousand nineteen school year which
51 shall, notwithstanding the requirements of subparagraph (vi) of para-
52 graph a of subdivision two of this section, provide for the expenditure
53 of an amount which shall be not less than the amount approved by the
54 commissioner in the contract for excellence for the two thousand seven-
55 teen--two thousand eighteen school year; and provided further that, a
56 school district that submitted a contract for excellence for the two

1 thousand eighteen--two thousand nineteen school year, unless all schools
2 in the district are identified as in good standing, shall submit a
3 contract for excellence for the two thousand nineteen--two thousand
4 twenty school year which shall, notwithstanding the requirements of
5 subparagraph (vi) of paragraph a of subdivision two of this section,
6 provide for the expenditure of an amount which shall be not less than
7 the amount approved by the commissioner in the contract for excellence
8 for the two thousand eighteen--two thousand nineteen school year; and
9 provided further that, a school district that submitted a contract for
10 excellence for the two thousand nineteen--two thousand twenty school
11 year, unless all schools in the district are identified as in good
12 standing, shall submit a contract for excellence for the two thousand
13 twenty--two thousand twenty-one school year which shall, notwithstanding
14 the requirements of subparagraph (vi) of paragraph a of subdivision two
15 of this section, provide for the expenditure of an amount which shall be
16 not less than the amount approved by the commissioner in the contract
17 for excellence for the two thousand nineteen--two thousand twenty school
18 year; and provided further that, a school district that submitted a
19 contract for excellence for the two thousand twenty--two thousand twen-
20 ty-one school year, unless all schools in the district are identified as
21 in good standing, shall submit a contract for excellence for the two
22 thousand twenty-one--two thousand twenty-two school year which shall,
23 notwithstanding the requirements of subparagraph (vi) of paragraph a of
24 subdivision two of this section, provide for the expenditure of an
25 amount which shall be not less than the amount approved by the commis-
26 sioner in the contract for excellence for the two thousand twenty--two
27 thousand twenty-one school year; and provided further that, a school
28 district that submitted a contract for excellence for the two thousand
29 twenty-one--two thousand twenty-two school year, unless all schools in
30 the district are identified as in good standing, shall submit a contract
31 for excellence for the two thousand twenty-two--two thousand twenty-
32 three school year which shall, notwithstanding the requirements of
33 subparagraph (vi) of paragraph a of subdivision two of this section,
34 provide for the expenditure of an amount which shall be not less than
35 the amount approved by the commissioner in the contract for excellence
36 for the two thousand twenty-one--two thousand twenty-two school year;
37 and provided further that, a school district that submitted a contract
38 for excellence for the two thousand twenty-two--two thousand twenty-
39 three school year, unless all schools in the district are identified as
40 in good standing, shall submit a contract for excellence for the two
41 thousand twenty-three--two thousand twenty-four school year which shall,
42 notwithstanding the requirements of subparagraph (vi) of paragraph a of
43 subdivision two of this section, provide for the expenditure of an
44 amount which shall be not less than the amount approved by the commis-
45 sioner in the contract for excellence for the two thousand twenty-two--
46 two thousand twenty-three school year; and provided further that, a
47 school district that submitted a contract for excellence for the two
48 thousand twenty-three--two thousand twenty-four school year, unless all
49 schools in the district are identified as in good standing, shall submit
50 a contract for excellence for the two thousand twenty-four--two thousand
51 twenty-five school year which shall, notwithstanding the requirements of
52 subparagraph (vi) of paragraph a of subdivision two of this section,
53 provide for the expenditure of an amount which shall be not less than
54 the amount approved by the commissioner in the contract for excellence
55 for the two thousand twenty-three--two thousand twenty-four school year;
56 and provided further that a school district that submitted a contract

1 for excellence for the two thousand twenty-four--two thousand twenty-
2 five school year, unless all schools in the district are identified as
3 in good standing, shall submit a contract for excellence for the two
4 thousand twenty-five--two thousand twenty-six school year which shall,
5 notwithstanding the requirements of subparagraph (vi) of paragraph a of
6 subdivision two of this section, provide for the expenditure of an
7 amount which shall be not less than the amount approved by the commis-
8 sioner in the contract for excellence for the two thousand twenty-four-
9 -two thousand twenty-five school year; provided, however, that, in a
10 city school district in a city having a population of one million or
11 more, notwithstanding the requirements of subparagraph (vi) of paragraph
12 a of subdivision two of this section, the contract for excellence shall
13 provide for the expenditure as set forth in subparagraph (v) of para-
14 graph a of subdivision two of this section. For purposes of this para-
15 graph, the "gap elimination adjustment percentage" shall be calculated
16 as the sum of one minus the quotient of the sum of the school district's
17 net gap elimination adjustment for two thousand ten--two thousand eleven
18 computed pursuant to chapter fifty-three of the laws of two thousand
19 ten, making appropriations for the support of government, plus the
20 school district's gap elimination adjustment for two thousand eleven--
21 two thousand twelve as computed pursuant to chapter fifty-three of the
22 laws of two thousand eleven, making appropriations for the support of
23 the local assistance budget, including support for general support for
24 public schools, divided by the total aid for adjustment computed pursu-
25 ant to chapter fifty-three of the laws of two thousand eleven, making
26 appropriations for the local assistance budget, including support for
27 general support for public schools. Provided, further, that such amount
28 shall be expended to support and maintain allowable programs and activ-
29 ities approved in the two thousand nine--two thousand ten school year or
30 to support new or expanded allowable programs and activities in the
31 current year.

32 § 2. Paragraph p of subdivision 1 of section 3602 of the education law
33 is REPEALED.

34 § 3. The opening paragraph and subparagraphs (i) and (ii) of paragraph
35 q of subdivision 1 of section 3602 of the education law, as amended by
36 section 16 of part YYY of chapter 59 of the laws of 2017, are amended to
37 read as follows:

38 "Poverty count" shall mean the sum of the product of the [~~lunch~~]
39 economically disadvantaged student count multiplied by sixty-five
40 percent, plus the product of the [~~census~~] SAIPE count multiplied by
41 sixty-five percent, where:

42 (i) [~~"Lunch"~~] "Economically disadvantaged student count" shall mean the
43 product of the public school enrollment of the school district on the
44 date enrollment was counted in accordance with this subdivision for the
45 base year multiplied by the three-year average [~~free and reduced price~~
46 ~~lunch percent~~] economically disadvantaged rate; and

47 (ii) [~~"Census"~~] "SAIPE count" shall mean the product of the public
48 school enrollment of the school district on the date enrollment was
49 counted in accordance with this subdivision for the base year multiplied
50 by the [~~census--2000 poverty~~] three-year average small area income and
51 poverty estimate rate.

52 § 4. Subparagraphs (iii), (iv) and (v) of paragraph q of subdivision 1
53 of section 3602 of the education law are REPEALED.

54 § 5. Paragraph kk of subdivision 1 of section 3602 of the education
55 law is REPEALED.

§ 6. Paragraph ll of subdivision 1 of section 3602 of the education law, as added by section 11-a of part A of chapter 56 of the laws of 2021, is renumbered subparagraph (iv) of paragraph q of such subdivision 1 and is amended to read as follows:

(iv) (1) "Economically disadvantaged count" shall be equal to the unduplicated count of all children registered to receive educational services in grades kindergarten through twelve, including children in ungraded programs who participate in, or whose family participates in, economic assistance programs, such as the free or reduced-price lunch programs, Social Security Insurance, Supplemental Nutrition Assistance Program, Foster Care, Refugee Assistance (cash or medical assistance), Earned Income Tax Credit (EITC), Home Energy Assistance Program (HEAP), Safety Net Assistance (SNA), Bureau of Indian Affairs (BIA), or Temporary Assistance for Needy Families (TANF).

(2) "Economically disadvantaged rate" shall mean the quotient arrived at when dividing the economically disadvantaged count by public enrollment as computed pursuant to subparagraph one of paragraph n of this subdivision.

(3) "Three-year average economically disadvantaged rate" shall equal the quotient of: (i) the sum of the economically disadvantaged count for the school year prior to the base year, plus such number for the school year two years prior to the base year, plus such number for the school year three years prior to the base year; divided by (ii) the sum of enrollment as computed pursuant to subparagraph one of paragraph n of ~~this~~ subdivision [~~one of this section~~] for the school year prior to the base year, plus such number for the school year two years prior to the base year, plus such number for the school year three years prior to the base year, [~~computed~~] rounded to four decimals [~~without rounding~~].

§ 7. Paragraph mm of subdivision 1 of section 3602 of the education law is renumbered subparagraph (iii) of paragraph q of such subdivision 1 and is amended to read as follows:

(iii) "Three-year average small area income and poverty estimate rate" shall equal the quotient of: (i) the sum of the number of persons aged five to seventeen within the school district, based on the small area income and poverty estimates produced by the United States census bureau, whose families had incomes below the poverty level for the calendar year prior to the year in which the base year began, plus such number for the calendar year two years prior to the year in which the base year began, plus such number for the calendar year three years prior to the year in which the base year began; divided by (ii) the sum of the total number of persons aged five to seventeen within the school district, based on such census bureau estimates, for the year prior to the year in which the base year began, plus such total number for the year two years prior to the year in which the base year began, plus such total number for the year three years prior to the year in which the base year began, [~~computed~~] rounded to four decimals [~~without rounding~~].

§ 8. Subparagraph 2 of paragraph g of subdivision 3 of section 3602 of the education law, as amended by section 13 of part B of chapter 57 of the laws of 2008, is amended to read as follows:

(2) a value computed by subtracting from one the product obtained by multiplying the combined wealth ratio by sixty-four hundredths, provided however, that for the purpose of computing the state sharing ratio for total foundation aid, the tier two value shall be computed by subtracting from one the product obtained when multiplying the combined wealth ratio by six hundred twenty-eight thousandths (0.628) and such values

1 shall be computed using the combined wealth ratio for total foundation
2 aid in place of the combined wealth ratio; or

3 § 9. The closing paragraph of paragraph g of subdivision 3 of section
4 3602 of the education law, as amended by section 8 of part A of chapter
5 56 of the laws of 2024, is amended to read as follows:

6 Such result shall be expressed as a decimal carried to three places
7 without rounding, but shall not be greater than ninety hundredths nor
8 less than zero, provided, however, that for the purpose of computing the
9 state sharing ratio for total foundation aid in the two thousand twenty-
10 ty-four--two thousand twenty-five school year ~~[and thereafter]~~, such
11 result shall not be greater than ninety-one hundredths (0.91), and that
12 for the purpose of computing the state sharing ratio for total founda-
13 tion aid in the two thousand twenty-five--two thousand twenty-six school
14 year and thereafter, such result shall not be greater than ninety-three
15 hundredths (0.93).

16 § 10. Subdivision 4 of section 3602 of the education law is amended by
17 adding a new paragraph f to read as follows:

18 f. Foundation aid payable in the two thousand twenty-five--two thou-
19 sand twenty-six school year. Notwithstanding any provision of law to the
20 contrary, foundation aid payable in the two thousand twenty-five--two
21 thousand twenty-six school year shall equal the greater of total founda-
22 tion aid or the product of one and two hundredths (1.02) multiplied by
23 the foundation aid base.

24 § 11. The education law is amended by adding a new section 319 to
25 read as follows:

26 § 319. Establishment of dual enrollment policy. 1. For purposes of
27 this section:

28 (a) "Dual enrollment" means any program that is a partnership between
29 at least one school and at least one institution of higher education
30 that provides high school students with the opportunity to enroll in
31 college courses and earn transcribed and transferable college credit
32 from the institution(s) while completing high school graduation and
33 diploma requirements. Dual enrollment is the umbrella under which exist-
34 ing programs like pathways in technology early college high schools
35 (P-Tech), smart scholars, and smart transfer fall.

36 (b) "School" means a charter school, a school district, or a board of
37 cooperative educational services.

38 2. The commissioner shall adopt a statewide policy outlining the defi-
39 nition of dual enrollment programs and guidelines for participation and
40 data reporting in New York state.

41 3. The policy established pursuant to subdivision two of this section
42 shall require that schools and higher education institutions annually
43 submit to the department data demonstrating participation and success in
44 dual enrollment programs in a form and manner determined by the commis-
45 sioner pursuant to subdivision five of this section. The department
46 shall annually publish such data on its public website no later than
47 January first in the school year following the school year for which the
48 data is applicable.

49 4. The policy established pursuant to subdivision two of this section
50 shall require that, by September first, two thousand twenty-six, all
51 schools participating in a dual enrollment program have on file with the
52 department a partnership agreement with the institution(s) of higher
53 education with which they are partnered. Such partnership agreements
54 shall establish the scope and terms of the dual enrollment program, as
55 well as a protocol for collecting, sharing, and reporting any data
56 required by the commissioner pursuant to this section. Partnership

agreements shall be consistent with the policy adopted by the commissioner pursuant to subdivision two of this section, and shall contain such other provisions as may be required by the commissioner. The partnership agreements shall be updated and resubmitted no less than once every five years. The commissioner shall develop and make publicly available the required partnership agreement form for schools and higher education institutions no later than January first, two thousand twenty-six.

5. On or before January first, two thousand twenty-six, the commissioner, the chancellor of the state university of New York, the chancellor of the city university of New York, and the governor shall jointly establish data points to be submitted pursuant to this section.

§ 12. Subdivision 4 of section 3627 of the education law, as amended by section 13-a of part A of chapter 56 of the laws of 2024, is amended to read as follows:

4. Notwithstanding any other provision of law to the contrary, any expenditures for transportation provided pursuant to this section in the two thousand thirteen--two thousand fourteen school year and thereafter and otherwise eligible for transportation aid pursuant to subdivision seven of section thirty-six hundred two of this article shall be considered approved transportation expenses eligible for transportation aid, provided further that for the two thousand thirteen--two thousand fourteen school year such aid shall be limited to eight million one hundred thousand dollars and for the two thousand fourteen--two thousand fifteen school year such aid shall be limited to the sum of twelve million six hundred thousand dollars plus the base amount and for the two thousand fifteen--two thousand sixteen school year through two thousand eighteen--two thousand nineteen school year such aid shall be limited to the sum of eighteen million eight hundred fifty thousand dollars plus the base amount and for the two thousand nineteen--two thousand twenty school year such aid shall be limited to the sum of nineteen million three hundred fifty thousand dollars plus the base amount and for the two thousand twenty--two thousand twenty-one school year such aid shall be limited to the sum of nineteen million eight hundred fifty thousand dollars plus the base amount and for the two thousand twenty-two--two thousand twenty-three school year such aid shall be limited to the sum of twenty-two million three hundred fifty thousand dollars plus the base amount and for the two thousand twenty-three--two thousand twenty-four school year such aid shall be limited to the sum of twenty-four million eight hundred fifty thousand dollars plus the base amount and for the two thousand twenty-four--two thousand twenty-five school year [~~and thereafter~~] such aid shall be limited to the sum of twenty-nine million eight hundred fifty thousand dollars plus the base amount and for the two thousand twenty-five--two thousand twenty-six school year and thereafter such aid shall be limited to the product of (i) the maximum amount of aid authorized by this subdivision for the base year, and (ii) the sum of one and the percentage increase in the consumer price index as defined in paragraph hh of subdivision one of section thirty-six hundred two of this article. For purposes of this subdivision, "base amount" means the amount of transportation aid paid to the school district for expenditures incurred in the two thousand twelve--two thousand thirteen school year for transportation that would have been eligible for aid pursuant to this section had this section been in effect in such school year, except that subdivision six of this section shall be deemed not to have been in effect. And provided further that the school district shall continue to annually expend for the transportation described in subdivi-

1 sion one of this section at least the expenditures used for the base
2 amount.

3 § 13. Paragraph i of subdivision 12 of section 3602 of the education
4 law, as amended by section 14 of part A of chapter 56 of the laws of
5 2024, is amended to read as follows:

6 i. For the two thousand twenty-one--two thousand twenty-two school
7 year through the two thousand ~~[twenty-four]~~ twenty-five--two thousand
8 ~~[twenty-five]~~ twenty-six school year, each school district shall be
9 entitled to an apportionment equal to the amount set forth for such
10 school district as "ACADEMIC ENHANCEMENT" under the heading "2020-21
11 ESTIMATED AIDS" in the school aid computer listing produced by the
12 commissioner in support of the budget for the two thousand twenty--two
13 thousand twenty-one school year and entitled "SA202-1", and such appor-
14 tionment shall be deemed to satisfy the state obligation to provide an
15 apportionment pursuant to subdivision eight of section thirty-six
16 hundred forty-one of this article.

17 § 14. The opening paragraph of subdivision 16 of section 3602 of the
18 education law, as amended by section 15 of part A of chapter 56 of the
19 laws of 2024, is amended to read as follows:

20 Each school district shall be eligible to receive a high tax aid
21 apportionment in the two thousand eight--two thousand nine school year,
22 which shall equal the greater of (i) the sum of the tier 1 high tax aid
23 apportionment, the tier 2 high tax aid apportionment and the tier 3 high
24 tax aid apportionment or (ii) the product of the apportionment received
25 by the school district pursuant to this subdivision in the two thousand
26 seven--two thousand eight school year, multiplied by the due-minimum
27 factor, which shall equal, for districts with an alternate pupil wealth
28 ratio computed pursuant to paragraph b of subdivision three of this
29 section that is less than two, seventy percent (0.70), and for all other
30 districts, fifty percent (0.50). Each school district shall be eligible
31 to receive a high tax aid apportionment in the two thousand nine--two
32 thousand ten through two thousand twelve--two thousand thirteen school
33 years in the amount set forth for such school district as "HIGH TAX AID"
34 under the heading "2008-09 BASE YEAR AIDS" in the school aid computer
35 listing produced by the commissioner in support of the budget for the
36 two thousand nine--two thousand ten school year and entitled "SA0910".
37 Each school district shall be eligible to receive a high tax aid appor-
38 tionment in the two thousand thirteen--two thousand fourteen through two
39 thousand ~~[twenty-four]~~ twenty-five--two thousand ~~[twenty-five]~~ twenty-
40 six school year equal to the greater of (1) the amount set forth for
41 such school district as "HIGH TAX AID" under the heading "2008-09 BASE
42 YEAR AIDS" in the school aid computer listing produced by the commis-
43 sioner in support of the budget for the two thousand nine--two thousand
44 ten school year and entitled "SA0910" or (2) the amount set forth for
45 such school district as "HIGH TAX AID" under the heading "2013-14 ESTI-
46 MATED AIDS" in the school aid computer listing produced by the commis-
47 sioner in support of the executive budget for the 2013-14 fiscal year
48 and entitled "BT131-4".

49 § 15. Subdivision 16 of section 3602-ee of the education law, as
50 amended by section 18 of part A of chapter 56 of the laws of 2024, is
51 amended to read as follows:

52 16. The authority of the department to administer the universal full-
53 day pre-kindergarten program shall expire June thirtieth, two thousand
54 ~~[twenty-five]~~ twenty-six; provided that the program shall continue and
55 remain in full effect.

§ 16. Paragraph a of subdivision 5 of section 3604 of the education law, as amended by chapter 161 of the laws of 2005, is amended to read as follows:

a. State aid adjustments. All errors or omissions in the apportionment shall be corrected by the commissioner. Whenever a school district has been apportioned less money than that to which it is entitled, the commissioner may allot to such district the balance to which it is entitled. Whenever a school district has been apportioned more money than that to which it is entitled, the commissioner may, by an order, direct such moneys to be paid back to the state to be credited to the general fund local assistance account for state aid to the schools, or may deduct such amount from the next apportionment to be made to said district, provided, however, that, upon notification of excess payments of aid for which a recovery must be made by the state through deduction of future aid payments, a school district may request that such excess payments be recovered by deducting such excess payments from the payments due to such school district and payable in the month of June in (i) the school year in which such notification was received and (ii) the two succeeding school years, provided further that there shall be no interest penalty assessed against such district or collected by the state. Such request shall be made to the commissioner in such form as the commissioner shall prescribe, and shall be based on documentation that the total amount to be recovered is in excess of one percent of the district's total general fund expenditures for the preceding school year. The amount to be deducted in the first year shall be the greater of (i) the sum of the amount of such excess payments that is recognized as a liability due to other governments by the district for the preceding school year and the positive remainder of the district's unreserved fund balance at the close of the preceding school year less the product of the district's total general fund expenditures for the preceding school year multiplied by five percent, or (ii) one-third of such excess payments. The amount to be recovered in the second year shall equal the lesser of the remaining amount of such excess payments to be recovered or one-third of such excess payments, and the remaining amount of such excess payments shall be recovered in the third year. Provided further that, notwithstanding any other provisions of this subdivision, any pending payment of moneys due to such district as a prior year adjustment payable pursuant to paragraph c of this subdivision for aid claims that had been previously paid as current year aid payments in excess of the amount to which the district is entitled and for which recovery of excess payments is to be made pursuant to this paragraph, shall be reduced at the time of actual payment by any remaining unrecovered balance of such excess payments, and the remaining scheduled deductions of such excess payments pursuant to this paragraph shall be reduced by the commissioner to reflect the amount so recovered. ~~[The commissioner shall certify no payment to a school district based on a claim submitted later than three years after the close of the school year in which such payment was first to be made. For claims for which payment is first to be made in the nineteen hundred ninety-six--ninety-seven school year, the commissioner shall certify no payment to a school district based on a claim submitted later than two years after the close of such school year.]~~ For claims for which payment is first to be made ~~[in the nineteen hundred ninety-seven--ninety-eight school year and thereafter]~~ prior to the two thousand twenty-four--two thousand twenty-five school year, the commissioner shall certify no payment to a school district based on a claim submitted later than one year after the close of such school year.

1 For claims for which payment is first to be made in the two thousand
2 twenty-four--two thousand twenty-five school year and thereafter, the
3 commissioner shall certify no payment to a school district based on a
4 claim submitted later than the first of November of such school year.
5 Provided, however, no payments shall be barred or reduced where such
6 payment is required as a result of a final audit of the state. It is
7 further provided that[, ~~until June thirtieth, nineteen hundred ninety-~~
8 ~~six, the commissioner may grant a waiver from the provisions of this~~
9 ~~section for any school district if it is in the best educational inter-~~
10 ~~ests of the district pursuant to guidelines developed by the commission-~~
11 ~~er and approved by the director of the budget] for any apportionments
12 provided pursuant to sections seven hundred one, seven hundred eleven,
13 seven hundred fifty-one, seven hundred fifty-three, nineteen hundred
14 fifty, thirty-six hundred two, thirty-six hundred two-b, thirty-six
15 hundred two-c, thirty-six hundred two-e and forty-four hundred five of
16 this chapter for the two thousand twenty-four--two thousand twenty-five
17 and two thousand twenty-five--two thousand twenty-six school years, the
18 commissioner shall certify no payment to a school district, other than
19 payments pursuant to subdivisions six-a, eleven, thirteen and fifteen of
20 section thirty-six hundred two of this part, in excess of the payment
21 computed based on an electronic data file used to produce the school aid
22 computer listing produced by the commissioner in support of the execu-
23 tive budget request submitted for the two thousand twenty-five--two
24 thousand twenty-six state fiscal year and entitled "BT252-6", and
25 further provided that for any apportionments provided pursuant to
26 sections seven hundred one, seven hundred eleven, seven hundred fifty-
27 one, seven hundred fifty-three, nineteen hundred fifty, thirty-six
28 hundred two, thirty-six hundred two-b, thirty-six hundred two-c, thir-
29 ty-six hundred two-e and forty-four hundred five of this chapter for the
30 two thousand twenty-six--two thousand twenty-seven school year and ther-
31 eafter, the commissioner shall certify no payment to a school district,
32 other than payments pursuant to subdivisions six-a, eleven, thirteen and
33 fifteen of section thirty-six hundred two of this part, in excess of the
34 payment computed based on an electronic data file used to produce the
35 school aid computer listing produced by the commissioner in support of
36 the executive budget request submitted for the state fiscal year in
37 which the school year commences.~~

38 § 17. The opening paragraph of section 3609-a of the education law, as
39 amended by section 23 of part A of chapter 56 of the laws of 2024, is
40 amended to read as follows:

41 For aid payable in the two thousand seven--two thousand eight school
42 year through the two thousand twenty-four--two thousand twenty-five
43 school year, "moneys apportioned" shall mean the lesser of (i) the sum
44 of one hundred percent of the respective amount set forth for each
45 school district as payable pursuant to this section in the school aid
46 computer listing for the current year produced by the commissioner in
47 support of the budget which includes the appropriation for the general
48 support for public schools for the prescribed payments and individual-
49 ized payments due prior to April first for the current year plus the
50 apportionment payable during the current school year pursuant to subdi-
51 vision six-a and subdivision fifteen of section thirty-six hundred two
52 of this part minus any reductions to current year aids pursuant to
53 subdivision seven of section thirty-six hundred four of this part or any
54 deduction from apportionment payable pursuant to this chapter for
55 collection of a school district basic contribution as defined in subdi-
56 vision eight of section forty-four hundred one of this chapter, less any

1 grants provided pursuant to subparagraph two-a of paragraph b of subdi-
2 vision four of section ninety-two-c of the state finance law, less any
3 grants provided pursuant to subdivision five of section ninety-seven-
4 nnnn of the state finance law, less any grants provided pursuant to
5 subdivision twelve of section thirty-six hundred forty-one of this arti-
6 cle, or (ii) the apportionment calculated by the commissioner based on
7 data on file at the time the payment is processed; provided however,
8 that for the purposes of any payments made pursuant to this section
9 prior to the first business day of June of the current year, moneys
10 apportioned shall not include any aids payable pursuant to subdivisions
11 six and fourteen, if applicable, of section thirty-six hundred two of
12 this part as current year aid for debt service on bond anticipation
13 notes and/or bonds first issued in the current year or any aids payable
14 for full-day kindergarten for the current year pursuant to subdivision
15 nine of section thirty-six hundred two of this part. The definitions of
16 "base year" and "current year" as set forth in subdivision one of
17 section thirty-six hundred two of this part shall apply to this section.

18 ~~[For aid payable in the two thousand twenty-four--two thousand twenty-~~
19 ~~five school year, reference to such "school aid computer listing for the~~
20 ~~current year" shall mean the printouts entitled "SA242-5".]~~ For aid
21 payable in the two thousand twenty-five--two thousand twenty-six school
22 year and thereafter, "moneys apportioned" shall mean the lesser of: (i)
23 the sum of one hundred percent of the respective amount set forth for
24 each school district as payable pursuant to this section in the school
25 aid computer listing for the current year produced by the commissioner
26 in support of the executive budget request which includes the appropri-
27 ation for the general support for public schools for the prescribed
28 payments and individualized payments due prior to April first for the
29 current year plus the apportionment payable during the current school
30 year pursuant to subdivisions six-a and fifteen of section thirty-six
31 hundred two of this part minus any reductions to current year aids
32 pursuant to subdivision seven of section thirty-six hundred four of this
33 part or any deduction from apportionment payable pursuant to this chap-
34 ter for collection of a school district basic contribution as defined in
35 subdivision eight of section forty-four hundred one of this chapter,
36 less any grants provided pursuant to subparagraph two-a of paragraph b
37 of subdivision four of section ninety-two-c of the state finance law,
38 less any grants provided pursuant to subdivision five of section nine-
39 ty-seven-nnnn of the state finance law, less any grants provided pursu-
40 ant to subdivision twelve of section thirty-six hundred forty-one of
41 this article, or (ii) the apportionment calculated by the commissioner
42 based on data on file at the time the payment is processed; provided
43 however, that for the purposes of any payments made pursuant to this
44 section prior to the first business day of June of the current year,
45 moneys apportioned shall not include any aids payable pursuant to subdi-
46 visions six and fourteen, if applicable, of section thirty-six hundred
47 two of this part as current year aid for debt service on bond antic-
48 ipation notes and/or bonds first issued in the current year or any aids
49 payable for full-day kindergarten for the current year pursuant to
50 subdivision nine of section thirty-six hundred two of this part. For aid
51 payable in the two thousand twenty-five--two thousand twenty-six school
52 year, reference to such "school aid computer listing for the current
53 year" shall mean the printouts entitled "BT252-6".

54 § 18. Subdivision b of section 2 of chapter 756 of the laws of 1992,
55 relating to funding a program for work force education conducted by the
56 consortium for worker education in New York city, as amended by section

1 27 of part A of chapter 56 of the laws of 2024, is amended to read as
2 follows:

3 b. Reimbursement for programs approved in accordance with subdivision
4 a of this section for the reimbursement for the 2018--2019 school year
5 shall not exceed 59.4 percent of the lesser of such approvable costs per
6 contact hour or fourteen dollars and ninety-five cents per contact hour,
7 reimbursement for the 2019--2020 school year shall not exceed 57.7
8 percent of the lesser of such approvable costs per contact hour or
9 fifteen dollars sixty cents per contact hour, reimbursement for the
10 2020--2021 school year shall not exceed 56.9 percent of the lesser of
11 such approvable costs per contact hour or sixteen dollars and twenty-
12 five cents per contact hour, reimbursement for the 2021--2022 school
13 year shall not exceed 56.0 percent of the lesser of such approvable
14 costs per contact hour or sixteen dollars and forty cents per contact
15 hour, reimbursement for the 2022--2023 school year shall not exceed 55.7
16 percent of the lesser of such approvable costs per contact hour or
17 sixteen dollars and sixty cents per contact hour, reimbursement for the
18 2023--2024 school year shall not exceed 54.7 percent of the lesser of
19 such approvable costs per contact hour or seventeen dollars and seventy
20 cents per contact hour, [and] reimbursement for the 2024--2025 school
21 year shall not exceed 56.6 percent of the lesser of such approvable
22 costs per contact hour or eighteen dollars and seventy cents per contact
23 hour, and reimbursement for the 2025--2026 school year shall not exceed
24 58.2 percent of the lesser of such approvable costs per contact hour or
25 nineteen dollars and fifty cents per contact hour, and where a contact
26 hour represents sixty minutes of instruction services provided to an
27 eligible adult. Notwithstanding any other provision of law to the
28 contrary, for the 2018--2019 school year such contact hours shall not
29 exceed one million four hundred sixty-three thousand nine hundred
30 sixty-three (1,463,963); for the 2019--2020 school year such contact
31 hours shall not exceed one million four hundred forty-four thousand four
32 hundred forty-four (1,444,444); for the 2020--2021 school year such
33 contact hours shall not exceed one million four hundred six thousand
34 nine hundred twenty-six (1,406,926); for the 2021--2022 school year such
35 contact hours shall not exceed one million four hundred sixteen thousand
36 one hundred twenty-two (1,416,122); for the 2022--2023 school year such
37 contact hours shall not exceed one million four hundred six thousand
38 nine hundred twenty-six (1,406,926); for the 2023--2024 school year such
39 contact hours shall not exceed one million three hundred forty-two thou-
40 sand nine hundred seventy-five (1,342,975); [and] for the 2024--2025
41 school year such contact hours shall not exceed one million two hundred
42 twenty-eight thousand seven hundred thirty-three (1,228,733); and for
43 the 2025--2026 school year such contact hours shall not exceed one
44 million fourteen thousand one hundred nine (1,014,109). Notwithstanding
45 any other provision of law to the contrary, the apportionment calculated
46 for the city school district of the city of New York pursuant to subdi-
47 vision 11 of section 3602 of the education law shall be computed as if
48 such contact hours provided by the consortium for worker education, not
49 to exceed the contact hours set forth herein, were eligible for aid in
50 accordance with the provisions of such subdivision 11 of section 3602 of
51 the education law.

52 § 19. Section 4 of chapter 756 of the laws of 1992, relating to fund-
53 ing a program for work force education conducted by the consortium for
54 worker education in New York city, is amended by adding a new subdivi-
55 sion dd to read as follows:

dd. The provisions of this subdivision shall not apply after the completion of payments for the 2025--2026 school year. Notwithstanding any inconsistent provisions of law, the commissioner of education shall withhold a portion of employment preparation education aid due to the city school district of the city of New York to support a portion of the costs of the work force education program. Such moneys shall be credited to the elementary and secondary education fund-local assistance account and shall not exceed eleven million five hundred thousand dollars (\$11,500,000).

§ 20. Section 6 of chapter 756 of the laws of 1992, relating to funding a program for work force education conducted by the consortium for worker education in New York city, as amended by section 29 of part A of chapter 56 of the laws of 2024, is amended to read as follows:

§ 6. This act shall take effect July 1, 1992, and shall be deemed repealed June 30, ~~2025~~ 2026.

§ 21. Subdivision 6 of section 4402 of the education law, as amended by section 25 of part A of chapter 56 of the laws of 2024, is amended to read as follows:

6. Notwithstanding any other law, rule or regulation to the contrary, the board of education of a city school district with a population of one hundred twenty-five thousand or more inhabitants shall be permitted to establish maximum class sizes for special classes for certain students with disabilities in accordance with the provisions of this subdivision. For the purpose of obtaining relief from any adverse fiscal impact from under-utilization of special education resources due to low student attendance in special education classes at the middle and secondary level as determined by the commissioner, such boards of education shall, during the school years nineteen hundred ninety-five--ninety-six through June thirtieth, two thousand ~~twenty-five~~ twenty-six, be authorized to increase class sizes in special classes containing students with disabilities whose age ranges are equivalent to those of students in middle and secondary schools as defined by the commissioner for purposes of this section by up to but not to exceed one and two tenths times the applicable maximum class size specified in regulations of the commissioner rounded up to the nearest whole number, provided that in a city school district having a population of one million or more, classes that have a maximum class size of fifteen may be increased by no more than one student and provided that the projected average class size shall not exceed the maximum specified in the applicable regulation, provided that such authorization shall terminate on June thirtieth, two thousand. Such authorization shall be granted upon filing of a notice by such a board of education with the commissioner stating the board's intention to increase such class sizes and a certification that the board will conduct a study of attendance problems at the secondary level and will implement a corrective action plan to increase the rate of attendance of students in such classes to at least the rate for students attending regular education classes in secondary schools of the district. Such corrective action plan shall be submitted for approval by the commissioner by a date during the school year in which such board increases class sizes as provided pursuant to this subdivision to be prescribed by the commissioner. Upon at least thirty days notice to the board of education, after conclusion of the school year in which such board increases class sizes as provided pursuant to this subdivision, the commissioner shall be authorized to terminate such authorization upon a finding that the board has failed to develop or implement an approved corrective action plan.

§ 22. Subdivisions 22 and 24 of section 140 of chapter 82 of the laws of 1995, amending the education law and other laws relating to state aid to school districts and the appropriation of funds for the support of government, as amended by section 26 of part A of chapter 56 of the laws of 2024, are amended to read as follows:

(22) sections one hundred twelve, one hundred thirteen, one hundred fourteen, one hundred fifteen and one hundred sixteen of this act shall take effect on July 1, 1995; provided, however, that section one hundred thirteen of this act shall remain in full force and effect until July 1, ~~2025~~ 2026 at which time it shall be deemed repealed;

(24) sections one hundred eighteen through one hundred thirty of this act shall be deemed to have been in full force and effect on and after July 1, 1995; provided further, however, that the amendments made pursuant to section one hundred twenty-four of this act shall be deemed to be repealed on and after July 1, ~~2025~~ 2026;

§ 23. Special apportionment for salary expenses. 1. Notwithstanding any other provision of law, upon application to the commissioner of education, not sooner than the first day of the second full business week of June 2026 and not later than the last day of the third full business week of June 2026, a school district eligible for an apportionment pursuant to section 3602 of the education law shall be eligible to receive an apportionment pursuant to this section, for the school year ending June 30, 2026, for salary expenses incurred between April 1 and June 30, 2025 and such apportionment shall not exceed the sum of (a) the deficit reduction assessment of 1990--1991 as determined by the commissioner of education, pursuant to paragraph f of subdivision 1 of section 3602 of the education law, as in effect through June 30, 1993, plus (b) 186 percent of such amount for a city school district in a city with a population in excess of 1,000,000 inhabitants, plus (c) 209 percent of such amount for a city school district in a city with a population of more than 195,000 inhabitants and less than 219,000 inhabitants according to the latest federal census, plus (d) the net gap elimination adjustment for 2010--2011, as determined by the commissioner of education pursuant to chapter 53 of the laws of 2010, plus (e) the gap elimination adjustment for 2011--2012 as determined by the commissioner of education pursuant to subdivision 17 of section 3602 of the education law, and provided further that such apportionment shall not exceed such salary expenses. Such application shall be made by a school district, after the board of education or trustees have adopted a resolution to do so and in the case of a city school district in a city with a population in excess of 125,000 inhabitants, with the approval of the mayor of such city.

2. The claim for an apportionment to be paid to a school district pursuant to subdivision 1 of this section shall be submitted to the commissioner of education on a form prescribed for such purpose, and shall be payable upon determination by such commissioner that the form has been submitted as prescribed. Such approved amounts shall be payable on the same day in September of the school year following the year in which application was made as funds provided pursuant to subparagraph 4 of paragraph b of subdivision 4 of section 92-c of the state finance law, on the audit and warrant of the state comptroller on vouchers certified or approved by the commissioner of education in the manner prescribed by law from moneys in the state lottery fund and from the general fund to the extent that the amount paid to a school district pursuant to this section exceeds the amount, if any, due such school district pursuant to subparagraph 2 of paragraph a of subdivision 1 of

1 section 3609-a of the education law in the school year following the
2 year in which application was made.

3 3. Notwithstanding the provisions of section 3609-a of the education
4 law, an amount equal to the amount paid to a school district pursuant to
5 subdivisions 1 and 2 of this section shall first be deducted from the
6 following payments due the school district during the school year
7 following the year in which application was made pursuant to subpara-
8 graphs 1, 2, 3, 4 and 5 of paragraph a of subdivision 1 of section
9 3609-a of the education law in the following order: the lottery appor-
10 tionment payable pursuant to subparagraph 2 of such paragraph followed
11 by the fixed fall payments payable pursuant to subparagraph 4 of such
12 paragraph and then followed by the district's payments to the teachers'
13 retirement system pursuant to subparagraph 1 of such paragraph, and any
14 remainder to be deducted from the individualized payments due the
15 district pursuant to paragraph b of such subdivision shall be deducted
16 on a chronological basis starting with the earliest payment due the
17 district.

18 § 24. Special apportionment for public pension accruals. 1. Notwith-
19 standing any other provision of law, upon application to the commission-
20 er of education, not later than June 30, 2026, a school district eligi-
21 ble for an apportionment pursuant to section 3602 of the education law
22 shall be eligible to receive an apportionment pursuant to this section,
23 for the school year ending June 30, 2026 and such apportionment shall
24 not exceed the additional accruals required to be made by school
25 districts in the 2004--2005 and 2005--2006 school years associated with
26 changes for such public pension liabilities. The amount of such addi-
27 tional accrual shall be certified to the commissioner of education by
28 the president of the board of education or the trustees or, in the case
29 of a city school district in a city with a population in excess of
30 125,000 inhabitants, the mayor of such city. Such application shall be
31 made by a school district, after the board of education or trustees have
32 adopted a resolution to do so and in the case of a city school district
33 in a city with a population in excess of 125,000 inhabitants, with the
34 approval of the mayor of such city.

35 2. The claim for an apportionment to be paid to a school district
36 pursuant to subdivision one of this section shall be submitted to the
37 commissioner of education on a form prescribed for such purpose, and
38 shall be payable upon determination by such commissioner that the form
39 has been submitted as prescribed. Such approved amounts shall be payable
40 on the same day in September of the school year following the year in
41 which application was made as funds provided pursuant to subparagraph 4
42 of paragraph b of subdivision 4 of section 92-c of the state finance
43 law, on the audit and warrant of the state comptroller on vouchers
44 certified or approved by the commissioner of education in the manner
45 prescribed by law from moneys in the state lottery fund and from the
46 general fund to the extent that the amount paid to a school district
47 pursuant to this section exceeds the amount, if any, due such school
48 district pursuant to subparagraph 2 of paragraph a of subdivision 1 of
49 section 3609-a of the education law in the school year following the
50 year in which application was made.

51 3. Notwithstanding the provisions of section 3609-a of the education
52 law, an amount equal to the amount paid to a school district pursuant to
53 subdivisions 1 and 2 of this section shall first be deducted from the
54 following payments due the school district during the school year
55 following the year in which application was made pursuant to subpara-
56 graphs 1, 2, 3, 4 and 5 of paragraph a of subdivision 1 of section

1 3609-a of the education law in the following order: the lottery appor-
2 tionment payable pursuant to subparagraph 2 of such paragraph followed
3 by the fixed fall payments payable pursuant to subparagraph 4 of such
4 paragraph and then followed by the district's payments to the teachers'
5 retirement system pursuant to subparagraph 1 of such paragraph, and any
6 remainder to be deducted from the individualized payments due the
7 district pursuant to paragraph b of such subdivision shall be deducted
8 on a chronological basis starting with the earliest payment due the
9 district.

10 § 25. The amounts specified in this section shall be a set-aside from
11 the state funds which each such district is receiving from the total
12 foundation aid:

13 1. for the development, maintenance or expansion of magnet schools or
14 magnet school programs for the 2025--2026 school year. For the city
15 school district of the city of New York there shall be a set-aside of
16 foundation aid equal to forty-eight million one hundred seventy-five
17 thousand dollars (\$48,175,000) including five hundred thousand dollars
18 (\$500,000) for the Andrew Jackson High School; for the Buffalo city
19 school district, twenty-one million twenty-five thousand dollars
20 (\$21,025,000); for the Rochester city school district, fifteen million
21 dollars (\$15,000,000); for the Syracuse city school district, thirteen
22 million dollars (\$13,000,000); for the Yonkers city school district,
23 forty-nine million five hundred thousand dollars (\$49,500,000); for the
24 Newburgh city school district, four million six hundred forty-five thou-
25 sand dollars (\$4,645,000); for the Poughkeepsie city school district,
26 two million four hundred seventy-five thousand dollars (\$2,475,000); for
27 the Mount Vernon city school district, two million dollars (\$2,000,000);
28 for the New Rochelle city school district, one million four hundred ten
29 thousand dollars (\$1,410,000); for the Schenectady city school district,
30 one million eight hundred thousand dollars (\$1,800,000); for the Port
31 Chester city school district, one million one hundred fifty thousand
32 dollars (\$1,150,000); for the White Plains city school district, nine
33 hundred thousand dollars (\$900,000); for the Niagara Falls city school
34 district, six hundred thousand dollars (\$600,000); for the Albany city
35 school district, three million five hundred fifty thousand dollars
36 (\$3,550,000); for the Utica city school district, two million dollars
37 (\$2,000,000); for the Beacon city school district, five hundred sixty-
38 six thousand dollars (\$566,000); for the Middletown city school
39 district, four hundred thousand dollars (\$400,000); for the Freeport
40 union free school district, four hundred thousand dollars (\$400,000);
41 for the Greenburgh central school district, three hundred thousand
42 dollars (\$300,000); for the Amsterdam city school district, eight
43 hundred thousand dollars (\$800,000); for the Peekskill city school
44 district, two hundred thousand dollars (\$200,000); and for the Hudson
45 city school district, four hundred thousand dollars (\$400,000).

46 2. Notwithstanding any inconsistent provision of law to the contrary,
47 a school district setting aside such foundation aid pursuant to this
48 section may use such set-aside funds for: (a) any instructional or
49 instructional support costs associated with the operation of a magnet
50 school; or (b) any instructional or instructional support costs associ-
51 ated with implementation of an alternative approach to promote diversity
52 and/or enhancement of the instructional program and raising of standards
53 in elementary and secondary schools of school districts having substan-
54 tial concentrations of minority students.

55 3. The commissioner of education shall not be authorized to withhold
56 foundation aid from a school district that used such funds in accordance

1 with this paragraph, notwithstanding any inconsistency with a request
2 for proposals issued by such commissioner for the purpose of attendance
3 improvement and dropout prevention for the 2025--2026 school year, and
4 for any city school district in a city having a population of more than
5 one million, the set-aside for attendance improvement and dropout
6 prevention shall equal the amount set aside in the base year. For the
7 2025--2026 school year, it is further provided that any city school
8 district in a city having a population of more than one million shall
9 allocate at least one-third of any increase from base year levels in
10 funds set aside pursuant to the requirements of this section to communi-
11 ty-based organizations. Any increase required pursuant to this section
12 to community-based organizations must be in addition to allocations
13 provided to community-based organizations in the base year.

14 4. For the purpose of teacher support for the 2025--2026 school year:
15 for the city school district of the city of New York, sixty-two million
16 seven hundred seven thousand dollars (\$62,707,000); for the Buffalo city
17 school district, one million seven hundred forty-one thousand dollars
18 (\$1,741,000); for the Rochester city school district, one million seven-
19 ty-six thousand dollars (\$1,076,000); for the Yonkers city school
20 district, one million one hundred forty-seven thousand dollars
21 (\$1,147,000); and for the Syracuse city school district, eight hundred
22 nine thousand dollars (\$809,000). All funds made available to a school
23 district pursuant to this section shall be distributed among teachers
24 including prekindergarten teachers and teachers of adult vocational and
25 academic subjects in accordance with this section and shall be in addi-
26 tion to salaries heretofore or hereafter negotiated or made available;
27 provided, however, that all funds distributed pursuant to this section
28 for the current year shall be deemed to incorporate all funds distrib-
29 uted pursuant to former subdivision 27 of section 3602 of the education
30 law for prior years. In school districts where the teachers are repres-
31 ented by certified or recognized employee organizations, all salary
32 increases funded pursuant to this section shall be determined by sepa-
33 rate collective negotiations conducted pursuant to the provisions and
34 procedures of article 14 of the civil service law, notwithstanding the
35 existence of a negotiated agreement between a school district and a
36 certified or recognized employee organization.

37 § 26. Support of public libraries. The moneys appropriated for the
38 support of public libraries by a chapter of the laws of 2025 enacting
39 the aid to localities budget shall be apportioned for the 2025--2026
40 state fiscal year in accordance with the provisions of sections 271,
41 272, 273, 282, 284, and 285 of the education law as amended by the
42 provisions of such chapter and the provisions of this section, provided
43 that library construction aid pursuant to section 273-a of the education
44 law shall not be payable from the appropriations for the support of
45 public libraries and provided further that no library, library system or
46 program, as defined by the commissioner of education, shall receive less
47 total system or program aid than it received for the year 2001--2002
48 except as a result of a reduction adjustment necessary to conform to the
49 appropriations for support of public libraries.

50 Notwithstanding any other provision of law to the contrary the moneys
51 appropriated for the support of public libraries for the year 2025--2026
52 by a chapter of the laws of 2025 enacting the aid to localities budget
53 shall fulfill the state's obligation to provide such aid and, pursuant
54 to a plan developed by the commissioner of education and approved by the
55 director of the budget, the aid payable to libraries and library systems
56 pursuant to such appropriations shall be reduced proportionately to

1 assure that the total amount of aid payable does not exceed the total
2 appropriations for such purpose.

3 § 27. Severability. The provisions of this act shall be severable, and
4 if the application of any clause, sentence, paragraph, subdivision,
5 section or part of this act to any person or circumstance shall be
6 adjudged by any court of competent jurisdiction to be invalid, such
7 judgment shall not necessarily affect, impair or invalidate the applica-
8 tion of any such clause, sentence, paragraph, subdivision, section, or
9 part of this act or remainder thereof, as the case may be, to any other
10 person or circumstance, but shall be confined in its operation to the
11 clause, sentence, paragraph, subdivision, section or part thereof
12 directly involved in the controversy in which such judgment shall have
13 been rendered.

14 § 28. This act shall take effect immediately, and shall be deemed to
15 have been in full force and effect on and after April 1, 2025, provided,
16 however, that:

17 1. Sections one, two, three, four, five, six, seven, eight, nine, ten,
18 twelve, thirteen, fourteen, fifteen, seventeen, twenty-one and twenty-
19 five of this act shall take effect July 1, 2025; and

20 2. The amendments to chapter 756 of the laws of 1992 made by sections
21 eighteen and nineteen of this act shall not affect the repeal of such
22 chapter and shall be deemed repealed therewith.

23 PART B

24 Section 1. The education law is amended by adding a new section 915-a
25 to read as follows:

26 § 915-a. Universal free school meals. 1. The department shall require
27 all school districts, charter schools and non-public schools in the
28 state that participate in the national school lunch program or school
29 breakfast program as provided in the Richard B. Russell National School
30 Lunch Act and the Child Nutrition Act, as amended, to serve breakfast
31 and lunch at no cost to the student. School districts, charter schools
32 and non-public schools shall maximize federal reimbursement for school
33 breakfast and lunch programs by adopting Provision 2, the federal Commu-
34 nity Eligibility Provision, or any other provision under such Act, the
35 National School Lunch Act or the National Child Nutrition Act that, in
36 the opinion of the department, maximizes federal funding for meals
37 served in such programs. Provided that school food authorities that do
38 not qualify as a single entity to participate in the community eligibil-
39 ity provision shall be required to group schools within the school food
40 authority, to the extent possible, for purposes of maximizing partic-
41 ipation in the community eligibility provision, and provided further
42 that school food authorities shall reapply annually for the community
43 eligibility provision program in the event that doing so would result in
44 a higher percentage of meals being reimbursed at the federal reimburse-
45 ment rate for a free meal.

46 2. Notwithstanding any provision of law, rule or regulation to the
47 contrary, for the two thousand twenty-five--two thousand twenty-six
48 school year and each school year thereafter, for each breakfast and
49 lunch meal served, the department shall reimburse the school food
50 authority the difference between (a) the combined state and federal
51 reimbursement rate for a reduced-price or paid meal, respectively, for
52 the current school year and (b) the combined state and federal
53 reimbursement rate for a free meal for the current school year, provided
54 that the total reimbursement rate for each meal served shall equal the

1 combined state and federal reimbursement rate for a free meal for the
2 current school year.

3 3. The department, in consultation with the office of temporary and
4 disability assistance, shall promulgate any rule or regulation needed
5 for school districts, charter schools and non-public schools to promote
6 the supplemental nutrition assistance program to a student or person in
7 parental relation to a student by providing either application assist-
8 ance or a direct referral to an outreach partner identified to the
9 department by the office of temporary and disability assistance to maxi-
10 mize the number of students directly certified for free school meals.

11 4. In addition to fulfilling any other applicable state and federal
12 requirements, the department shall provide technical assistance to
13 assist school districts, charter schools, and non-public schools in the
14 transition to universal school meals to ensure successful program oper-
15 ations and to maximize federal funding, including but not limited to the
16 following:

17 (a) Assisting school food authorities with one or more schools quali-
18 fying for the community eligibility provision in meeting any state and
19 federal requirements necessary in order to maximize reimbursement
20 through the community eligibility provision, including assisting such
21 school food authorities in maximizing participation in the community
22 eligibility provision.

23 (b) If a school food authority is ineligible to participate in and
24 receive reimbursement through the community eligibility provision,
25 assisting the school food authority in achieving and maximizing eligi-
26 bility and, if that is not feasible, assisting the school food authority
27 in determining the viability of using Provision 2 or other special
28 federal provisions available to schools to maximize federal reimburse-
29 ment.

30 5. School districts, charter schools, and non-public schools shall
31 maximize the number of students eligible for free meals by conducting
32 the Direct Certification Matching Process at a minimum of three times
33 per year, designating children as "Other Source Categorically Eligible",
34 as defined by federal regulations, or, for schools not participating in
35 the Community Eligibility Provision or Provision 2, by annually collect-
36 ing the free and reduced-price meal application.

37 § 2. Section 925 of the education law is REPEALED.

38 § 3. This act shall take effect July 1, 2025.

39 PART C

40 Section 1. The education law is amended by adding a new section 2803
41 to read as follows:

42 § 2803. Use of internet-enabled devices during the school day. 1. For
43 purposes of this section:

44 (a) "Internet-enabled devices" shall mean and include any smartphone,
45 tablet, smartwatch, or other device capable of connecting to the inter-
46 net and enabling the user to access content on the internet, including
47 social media applications; provided, however, that "internet-enabled
48 devices" shall not include:

49 (i) non-internet-enabled devices such as cellular phones or other
50 communication devices not capable of connecting to the internet or
51 enabling the user to access content on the internet; or

52 (ii) internet-enabled devices supplied by the school district, charter
53 school, or board of cooperative educational services that are used for
54 an educational purpose.

1 (b) "School day" shall mean the entirety of every instructional day as
2 required by subdivision seven of section thirty-six hundred four of this
3 chapter during all instructional time and non-instructional time,
4 including but not limited to homeroom periods, lunch, recess, study
5 halls, and passing time.

6 (c) "School grounds" shall mean in or on or within any building,
7 structure, athletic playing field, playground, or land contained within
8 the real property boundary line of a district elementary, intermediate,
9 junior high, vocational, or high school, a charter school, or a board of
10 cooperative educational services facility.

11 2. Notwithstanding paragraph b of subdivision one of section 2854 of
12 of this chapter, each school district, charter school, and board of
13 cooperative educational services shall adopt a written policy prohibit-
14 ing the use of internet-enabled devices by students during the school
15 day anywhere on school grounds.

16 3. The policy adopted and implemented pursuant to subdivision two of
17 this section shall include one or more methods for parents and guardians
18 of students to contact students during the school day and provide for
19 written notification of parents and guardians of these methods at the
20 beginning of each school year.

21 4. The policy adopted and implemented pursuant to subdivision two of
22 this section shall include one or more methods for on-site storage where
23 students may store their internet-enabled devices during the school day,
24 which may include student lockers.

25 5. (a) The policy adopted and implemented pursuant to subdivision two
26 of this section may authorize student use of an internet-enabled device
27 during the school day on school grounds:

28 (i) if authorized by a teacher, principal, or the school district,
29 charter school, or board of cooperative educational services for a
30 specific educational purpose;

31 (ii) where necessary for the management of a student's healthcare;

32 (iii) in the event of an emergency;

33 (iv) for translation services; or

34 (v) where required by law.

35 (b) The policy may not prohibit a student's use of an internet-enabled
36 device where such use is included in the student's:

37 (i) individualized education program; or

38 (ii) plan developed pursuant to section five hundred four of the
39 federal rehabilitation act of 1973, 29 U.S.C. 794.

40 6. No later than August first, two thousand twenty-five, each school
41 district, charter school, and board of cooperative educational services
42 shall adopt and publish in a clearly visible and accessible location on
43 its website the internet-enabled device policy established pursuant to
44 subdivision two of this section. Translation of such policy into any of
45 the twelve most common non-English languages spoken by limited-English
46 proficient individuals in the state, based on the data in the most
47 recent American community survey published by the United States census
48 bureau, shall be provided upon request.

49 7. No later than September first, two thousand twenty-six, and each
50 September first thereafter, each school district, charter school, and
51 board of cooperative educational services shall publish an annual report
52 on its website detailing enforcement of the policy within the district,
53 charter school, or board of cooperative educational services in the
54 prior school year, including non-identifiable demographic data of
55 students who have faced disciplinary action for non-compliance and anal-
56 ysis of any demographic disparities in enforcement of the policy. If a

statistically significant disparate enforcement impact is identified, such report shall include a mitigation action plan.

§ 2. This act shall take effect immediately.

PART D

Section 1. Section 666 of the education law is REPEALED.

§ 2. Paragraph a of subdivision 2 of section 667-c of the education law, as amended by section 1 of part E of chapter 56 of the laws of 2022, is amended to read as follows:

a. for students defined in paragraph a of subdivision one of this section, a part-time student is one who: (i) ~~is~~ is enrolled ~~[as a first-time freshman during the two thousand six two thousand seven academic year or thereafter]~~ at a college or university within the state university, including a statutory or contract college, a community college established pursuant to article one hundred twenty-six of this chapter, the city university of New York, or a non-profit college or university incorporated by the regents or by the legislature;

(ii) is enrolled for at least ~~[six]~~ three but less than twelve semester hours, or the equivalent, per semester in an approved undergraduate degree program; and

(iii) has a cumulative grade-point average of at least 2.00.

§ 3. Section 667-c-1 of the education law is REPEALED.

§ 4. Paragraph c of subdivision 5 of section 610 of the education law, as added by chapter 425 of the laws of 1988, is amended to read as follows:

c. Any semester, quarter or term of attendance during which a student receives an award for part-time study pursuant to this section shall be counted as one-half of a semester, quarter or term, as the case may be, toward the maximum term of eligibility for tuition assistance awards pursuant to ~~[sections six hundred sixty-six and]~~ section six hundred sixty-seven of this chapter.

§ 5. Subdivision 2 of section 667 of the education law, as amended by chapter 376 of the laws of 2019, is amended to read as follows:

2. Duration. No undergraduate shall be eligible for more than four academic years of study, or five academic years if the program of study normally requires five years. Students enrolled in a program of remedial study, approved by the commissioner in an institution of higher education and intended to culminate in a degree in undergraduate study shall, for purposes of this section, be considered as enrolled in a program of study normally requiring five years. An undergraduate student enrolled in an eligible two year program of study approved by the commissioner shall be eligible for no more than three academic years of study. An undergraduate student enrolled in an approved two or four-year program of study approved by the commissioner who must transfer to another institution as a result of permanent college closure shall be eligible for up to two additional semesters, or their equivalent, to the extent credits necessary to complete ~~[his or her]~~ the student's program of study were deemed non-transferable from the closed institution or were deemed not applicable to such student's program of study by the new institution. Any semester, quarter, or term of attendance during which a student receives any award under this article, after the effective date of the former scholar incentive program and prior to academic year nineteen hundred eighty-nine--nineteen hundred ninety, shall be counted toward the maximum term of eligibility for tuition assistance under this section, except that any semester, quarter or term of attendance during

1 which a student received an award pursuant to section six hundred
2 sixty-six of this subpart shall be counted as one-half of a semester,
3 quarter or term, as the case may be, toward the maximum term of eligi-
4 bility under this section. Any semester, quarter or term of attendance
5 during which a student received an award pursuant to section six hundred
6 sixty-seven-a of this subpart shall not be counted toward the maximum
7 term of eligibility under this section.

8 § 6. This act shall take effect immediately and shall apply to academ-
9 ic years 2025-2026 and thereafter.

10

PART E

11 Section 1. Subdivision 2 of section 669-h of the education law, as
12 amended by section 1 of part G of chapter 56 of the laws of 2022, is
13 amended to read as follows:

14 2. Amount. Within amounts appropriated therefor and based on avail-
15 ability of funds, awards shall be granted [~~beginning with the two thou-~~
16 ~~sand seventeen two thousand eighteen academic year and thereafter~~] to
17 applicants that the corporation has determined are eligible to receive
18 such awards. The corporation shall grant such awards in an amount up to
19 [~~five thousand five hundred dollars or~~] actual tuition[, ~~whichever is~~
20 ~~less~~]; provided, however, (a) a student who receives educational grants
21 and/or scholarships that cover the student's full cost of attendance
22 shall not be eligible for an award under this program; and (b) an award
23 under this program shall be applied to tuition after the application of
24 payments received under the tuition assistance program pursuant to
25 section six hundred sixty-seven of this subpart, tuition credits pursu-
26 ant to section six hundred eighty-nine-a of this article, federal Pell
27 grant pursuant to section one thousand seventy of title twenty of the
28 United States code, et seq., and any other program that covers the cost
29 of attendance unless exclusively for non-tuition expenses, and the award
30 under this program shall be reduced in the amount equal to such
31 payments, provided that the combined benefits do not exceed [~~five thou-~~
32 ~~sand five hundred dollars. Upon notification of an award under this~~
33 ~~program, the institution shall defer the amount of tuition. Notwith-~~
34 ~~standing paragraph h of subdivision two of section three hundred fifty-~~
35 ~~five and paragraph (a) of subdivision seven of section six thousand two~~
36 ~~hundred six of this chapter, and any other law, rule or regulation to~~
37 ~~the contrary,~~] the resident undergraduate tuition charged by [~~the insti-~~
38 ~~tution to recipients of an award shall not exceed the tuition rate~~
39 ~~established by the institution for the two thousand sixteen two thou-~~
40 ~~sand seventeen academic year provided, however, that in the two thousand~~
41 ~~twenty two two thousand twenty three academic year and every year ther-~~
42 ~~eafter, the undergraduate tuition charged by the institution to recipi-~~
43 ~~ents of an award shall be reset to equal the tuition rate established by~~
44 ~~the institution for the forthcoming academic year, provided further that~~
45 ~~the tuition credit calculated pursuant to section six hundred eighty-~~
46 ~~nine a of this article shall be applied toward the tuition rate charged~~
47 ~~for recipients of an award under this program. Provided further that]~~
48 the state university of New York [~~and the city university of New York~~
49 ~~shall provide an additional tuition credit to students receiving an~~
50 ~~award to cover the remaining cost of tuition~~].

51 § 2. This act shall take effect immediately and shall be applicable to
52 academic years 2025-2026 and thereafter.

53

PART F

1 Section 1. The education law is amended by adding a new section 6311
2 to read as follows:

3 § 6311. New York opportunity promise scholarship. 1. Eligibility. A
4 New York opportunity promise scholarship shall be awarded to an appli-
5 cant who meets all of the following conditions:

6 (a) is at least twenty-five years of age or older, but in no case more
7 than fifty-five years of age, as of January first of the calendar year
8 for the semester for which the applicant makes initial application;

9 (b) has applied for a New York state tuition assistance program award
10 pursuant to section six hundred sixty-seven of this chapter, a federal
11 Pell grant pursuant to section 1070 of title 20 of the United States
12 code, et. seq., and any other applicable financial aid;

13 (c) is matriculated at a community college of the state university of
14 New York or the city university of New York, as defined in subdivision
15 two of section sixty-three hundred one of this article or subdivision
16 four of section sixty-two hundred two of this title, respectively, in an
17 approved program directly leading to an associate's degree in a high-de-
18 mand field; provided that for the two thousand twenty-five -- two thou-
19 sand twenty-six academic year, such fields shall include but not be
20 limited to advanced manufacturing, technology, cybersecurity, engineer-
21 ing, artificial intelligence, nursing and allied health professions,
22 green and renewable energy, and pathways to teaching in shortage areas,
23 provided further that such fields may be updated annually thereafter by
24 the department of labor no later than one hundred eighty days prior to
25 the first start date of the fall term of such community colleges, and
26 provided further that the eligibility of such approved program estab-
27 lished in the semester for which the applicant makes initial application
28 shall continue;

29 (d) is eligible for the payment of tuition and fees at a rate no
30 greater than that imposed for resident students in community colleges;
31 and

32 (e) has not already obtained any postsecondary degree, provided that
33 nothing in this paragraph shall be construed to prohibit the eligibility
34 of a student who is already enrolled in an eligible associate degree
35 program on the effective date of this section and who meets all the
36 other eligibility requirements of this subdivision.

37 2. Amount. Within amounts appropriated therefor, and subject to avail-
38 ability of funds, awards shall be granted for the two thousand twenty-
39 five -- two thousand twenty-six academic year and thereafter to appli-
40 cants who are determined to be eligible to receive such awards. Such
41 awards shall be calculated on a per term basis prior to the start of
42 each term the applicant is successfully enrolled and shall not exceed
43 the positive difference, if any, of (a) the sum of actual tuition, fees,
44 books, and applicable supplies charged to the applicant and approved by
45 the applicable community college, less (b) the sum of all payments
46 received by the applicant from all sources of financial aid received by
47 the applicant with the exception of aid received pursuant to federal
48 work-study programs authorized under sections 1087-51 through 1087-58 of
49 title 20 of the United States code and educational loans taken by the
50 applicant or guardian.

51 3. Additional provisions. An eligible recipient shall complete at
52 least six credits per semester, for a total of at least twelve credits
53 per academic year, in an approved program of study. An eligible recipi-
54 ent shall be continuously enrolled without a gap of more than one
55 academic year, provided that such duration may be extended for an allow-
56 able interruption of study including, but not limited to, death of a

1 family member, medical leave, military service, and parental leave.
2 Notwithstanding any inconsistent provision of this section, if an appli-
3 cant fails to meet the eligibility criteria of this section at any
4 point, no further awards shall be made to the applicant.

5 4. Conditions. (a) An eligible recipient shall continue to make satis-
6 factory academic progress in order to maintain continued eligibility for
7 an award pursuant to this section.

8 (b) Each campus that enrolls students pursuant to this section shall
9 take steps consistent with established policy to maximize the award of
10 credit for prior learning for participating students.

11 (c) No student shall receive an award pursuant to this section for
12 greater than ten semesters.

13 (d) A student who earns college credit pursuant to this section shall
14 be entitled to transfer such credit to another state university of New
15 York or city university of New York campus consistent with transfer
16 policies established by the state university of New York or city univer-
17 sity of New York.

18 5. Reporting. By September first, two thousand twenty-six, and by
19 September first of each year thereafter, the chancellor of the state
20 university of New York and the chancellor of the city university of New
21 York shall each submit a report to the governor, the speaker of the
22 assembly, and the temporary president of the senate, including but not
23 limited to the following information:

24 (a) enrollment data by full and part-time status;

25 (b) retention and completion rates by full and part-time status;

26 (c) barriers to student participation;

27 (d) demographic data related to the program;

28 (e) average prior learning and transfer credit awarded;

29 (f) the total amount of funds awarded and the average award per
30 student; and

31 (g) post-completion outcomes including transfer, employment, and
32 wages, as applicable.

33 § 2. This act shall take effect immediately.

34 PART G

35 Section 1. Section 292 of the executive law is amended by adding a new
36 subdivision 42 to read as follows:

37 42. The term "real estate appraisal" shall have the same meaning as in
38 subdivision two of section one hundred sixty-a of this chapter.
39 Provided, however, that (a) real estate appraisals subject to this arti-
40 cle include those performed by any person or entity whose business holds
41 itself out as engaging in residential real estate appraisals, regardless
42 of whether or not such person or entity is certified or licensed to
43 provide real estate appraisals pursuant to the provisions of article
44 six-E of this chapter, and (b) for the purposes of this article, the
45 real estate appraisal includes all oral communications and all written
46 comments and other documents submitted as support for the estimate,
47 opinion of value, or analysis.

48 § 2. Subdivision 5 of section 296 of the executive law is amended by
49 adding a new paragraph (h) to read as follows:

50 (h) It shall be an unlawful discriminatory practice for any person to
51 discriminate against any individual in making real estate appraisal
52 services available or to base a real estate appraisal, estimate, or
53 opinion of value on the race, creed, color, national origin, citizen-
54 ship or immigration status, sexual orientation, gender identity or

1 expression, military status, sex, age, disability, marital status,
2 status as a victim of domestic violence, lawful source of income, or
3 familial status of either the prospective owners or occupants of the
4 real property, the present owners or occupants of the real property, or
5 the present owners or occupants of the real properties in the vicinity
6 of the property. Nothing in this section shall prohibit a real estate
7 appraiser from taking into consideration factors other than race, creed,
8 color, national origin, citizenship or immigration status, sexual orien-
9 tation, gender identity or expression, military status, sex, age, disa-
10 bility, marital status, status as a victim of domestic violence, lawful
11 source of income, or familial status.

12 § 3. Subdivision 9 of section 160-e of the executive law, as amended
13 by chapter 397 of the laws of 1991, is amended to read as follows:

14 9. To suspend and revoke certificates or licenses or impose fines
15 pursuant to the disciplinary proceedings provided for in this article.

16 § 4. The opening paragraph of subdivision 1 of section 160-u of the
17 executive law, as amended by chapter 397 of the laws of 1991, is amended
18 to read as follows:

19 The rights of any holder under a state certificate as a state certi-
20 fied real estate appraiser, or a license as a state licensed real estate
21 appraiser, may be revoked or suspended, or the holder of the certif-
22 ication or license may be otherwise disciplined in accordance with the
23 provisions of this article, upon any of the grounds set forth in this
24 section. As an alternative or in addition to such suspension or revoca-
25 tion, a fine not exceeding two thousand dollars may be imposed on any
26 holder of the certification or license, provided that fifty percent of
27 all moneys received by the department of state for such fines shall be
28 payable to the anti-discrimination in housing fund established pursuant
29 to section eighty-a of the state finance law. The department may inves-
30 tigate the actions of a state certified or licensed real estate
31 appraiser, and may [~~revoke or suspend the rights of~~] sanction or other-
32 wise discipline a certificate or license holder [~~or otherwise discipline~~
33 ~~a state certified or licensed real estate appraiser~~] for any of the
34 following acts or omissions:

35 § 5. Subdivision 1 of section 160-v of the executive law, as amended
36 by chapter 241 of the laws of 1999, is amended to read as follows:

37 1. Before suspending or revoking any certification or license or
38 imposing any fines on a holder of a certification or license, the
39 department shall notify the state certified or licensed real estate
40 appraiser or licensed real estate appraiser assistant in writing of any
41 charges made at least twenty days prior to the date set for the hearing
42 and shall afford [~~him or her~~] such real estate appraiser or such real
43 estate appraiser assistant an opportunity to be heard in person or by
44 counsel.

45 § 6. Subdivision 2 of section 160-w of the executive law, as amended
46 by chapter 241 of the laws of 1999, is amended to read as follows:

47 2. If the department determined that a state certified or licensed
48 real estate appraiser or licensed real estate appraiser assistant is
49 guilty of a violation of any of the provisions of this article, it shall
50 prepare a finding of fact and recommend that such appraiser be reprim-
51 manded [~~or~~], that [~~his or her~~] their certification or license be
52 suspended or revoked, and/or indicate whether a fine shall be imposed.
53 The decision and order of the department shall be final.

54 § 7. Subdivisions 2 and 3 of section 80-a of the state finance law,
55 subdivision 2 as added by chapter 687 of the laws of 2021 and subdivi-

1 sion 3 as amended by chapter 89 of the laws of 2022, are amended to read
2 as follows:

3 2. The anti-discrimination in housing fund shall consist of moneys
4 appropriated thereto, moneys transferred from any other fund or sources,
5 fifty percent of all fines and forfeitures collected pursuant to subdivi-
6 vision one of section one hundred sixty-u of the executive law, and
7 fifty percent of all fines and forfeitures collected pursuant to para-
8 graph (a) of subdivision one of section four hundred forty-one-c of the
9 real property law. Nothing contained in this section shall prevent the
10 state from receiving grants, gifts or bequests for the purposes of the
11 fund as defined in this section and depositing them into the fund
12 according to law.

13 3. The moneys in the anti-discrimination in housing fund shall be kept
14 separate from and shall not be commingled with any other moneys in the
15 custody of the state comptroller. Such moneys shall be made available to
16 the office of the attorney general, for [~~fair housing testing~~] programs
17 assisting with fair housing compliance, which includes, but is not
18 limited to, fair housing testing, outreach and education on fair housing
19 protections, addressing and investigating fair housing allegations and
20 complaints, and addressing discrimination in appraisals, including new
21 appraisals and appraisal review, through allocation of grants to duly
22 applying county, city, town or village human rights commissions, or
23 other duly applying county, city, town, village or not-for-profit enti-
24 ties specializing in the prevention of unlawful discrimination in hous-
25 ing, to detect unlawful discrimination in housing.

26 § 8. Severability. If any provision of this act, or any application of
27 any provision of this act, is held to be invalid, that shall not affect
28 the validity or effectiveness of any other provision of this act, or of
29 any other application of any provision of this act, which can be given
30 effect without that provision or application; and to that end, the
31 provisions and applications of this act are severable.

32 § 9. This act shall take effect immediately.

33 PART H

34 Section 1. Section 340 of the general business law is amended by
35 adding a new subdivision 2-a to read as follows:

36 2-a. (a) Subject to the exceptions hereinafter provided in this subdivi-
37 vision, the provisions of this article shall apply to coordinators
38 pursuant to paragraph (c) of this subdivision and to residential rental
39 property owners or managers pursuant to paragraph (d) of this subdivi-
40 sion.

41 (b) As used in this subdivision, the following terms shall have the
42 following meanings:

43 (i) "Algorithm" means a computational process that uses a set of rules
44 to define a sequence of operations.

45 (ii) "Algorithmic device" means any machine, device, computer program
46 or computer software that, on its own or with human assistance performs
47 a coordinating function.

48 (iii) "Coordinating function" means performing all of the following
49 subfunctions, provided, however, that a product used for the purpose of
50 establishing rent or income limits in accordance with the rent stabili-
51 zation code or emergency tenant protection act or affordable housing
52 program guidelines of a local government, the state, the federal govern-
53 ment, or other political subdivision shall not be considered to be
54 performing a coordinating function:

(1) collecting historical or contemporaneous prices, supply levels, or lease or rental contract termination and renewal dates of residential dwelling units from two or more residential rental property owners or managers, provided that at least two such residential rental property owners or managers are not wholly-owned subsidiaries of the same parent entity or otherwise owned or managed by the same residential rental property owner or manager;

(2) analyzing or processing the information described in clause one of this subparagraph using a system, software, or process that uses computation, including by using that information to train an algorithm; and

(3) recommending rental prices, lease renewal terms, ideal occupancy levels, or other lease terms and conditions to a residential rental property owner or manager.

(iv) "Coordinator" means any person or entity that operates or licenses a software or data analytics service that performs a coordinating function for two or more residential rental property owners or managers.

(v) "Residential rental property owner or manager" means any individual or entity that owns or is a beneficial owner of, directly or indirectly, in whole or in part, or manages one or more residential rental dwelling units in New York state.

(c) It shall be considered an unlawful violation of this article for a coordinator to facilitate an agreement between or among two or more residential rental property owners or managers to not compete with respect to residential rental dwelling units, including by performing a coordinating function on behalf of or between and among such residential rental property owners or managers.

(d) It shall be considered an unlawful violation of this article for a residential rental property owner or manager to enter into such an agreement as is described in paragraph (c) of this subdivision either expressly or by adjusting rental prices, lease renewal terms, occupancy levels, or other lease terms and conditions in one or more of their residential rental properties based on recommendations from an algorithmic device performing a coordinating function.

§ 2. This act shall take effect on the sixtieth day after it shall have become law.

PART I

Section 1. Section 7-107 of the general obligations law, as added by chapter 917 of the laws of 1984, is amended to read as follows:

§ 7-107. Liability of a grantee or assignee for deposits made by tenants upon conveyance of rent stabilized dwelling units. 1. This section shall apply only to dwelling units subject to the New York city rent stabilization law of nineteen hundred sixty-nine or the emergency tenant protection act of nineteen seventy-four.

~~2. [(a) Any grantee or assignee of any dwelling unit referred to in subdivision one of this section shall be liable to a tenant for any sum of money or any other thing of value deposited as security for the full performance by such tenant of the terms of his lease, plus any accrued interest, if his or its predecessor in interest was liable for such funds. Such liability shall attach whether or not the successor in interest has, upon the conveyance of such dwelling unit, received the sum as deposited.~~

~~(b) The liability of a receiver for payment of any security deposit plus accrued interest pursuant to this subdivision shall be limited to~~

~~the amount of such deposit actually turned over to him or it pursuant to subdivision one of section 7-105 of this chapter and to the operating income in excess of expenses generated during his or its period of receivership]~~ No deposit or advance shall exceed the amount of one month's rent under any contract for the lease or tenancy of a dwelling unit subject to this section.

3. ~~[Any agreement by a lessee or tenant of a dwelling unit waiving or modifying his rights as set forth in this section shall be void]~~ The entire amount of the deposit or advance shall be refundable to the tenant upon the tenant's vacating of the premises except for an amount lawfully retained for the reasonable and itemized costs due to non-payment of rent, damage caused by the tenant beyond normal wear and tear, non-payment of utility charges payable directly to the landlord under the terms of the lease or tenancy, and moving and storage of the tenant's belongings. The landlord may not retain any amount of the deposit for costs relating to ordinary wear and tear of occupancy or damage caused by a prior tenant.

4. After initial lease signing but before the tenant begins occupancy, the landlord shall offer the tenant the opportunity to inspect the premises with the landlord or the landlord's agent to determine the condition of the property. If the tenant requests such inspection, the parties shall execute a written agreement before the tenant begins occupancy of the unit attesting to the condition of the property and specifically noting any existing defects or damages. Upon the tenant's vacating of the premises, the landlord may not retain any amount of the deposit or advance due to any condition, defect, or damage noted in such agreement. The agreement shall be admissible as evidence of the condition of the premises at the beginning of occupancy only in proceedings related to the return or amount of the security deposit.

5. Within a reasonable time after notification of either party's intention to terminate the tenancy, unless the tenant terminates the tenancy with less than two weeks' notice, the landlord shall notify the tenant in writing of the tenant's right to request an inspection before vacating the premises and of the tenant's right to be present at the inspection. If the tenant requests such an inspection, the inspection shall be made no earlier than two weeks and no later than one week before the end of the tenancy. The landlord shall provide at least forty-eight hours written notice of the date and time of the inspection. After the inspection, the landlord shall provide the tenant with an itemized statement specifying repairs or cleaning that are proposed to be the basis of any deductions from the tenant's deposit. The tenant shall have the opportunity to cure any such condition before the end of the tenancy. Any statement produced pursuant to this subdivision shall only be admissible in proceedings related to the return or amount of the security deposit.

6. Within fourteen days after the tenant has vacated the premises, the landlord shall provide the tenant with an itemized statement indicating the basis for the amount of the deposit retained, if any, and shall return any remaining portion of the deposit to the tenant. If a landlord fails to provide the tenant with the statement and deposit within fourteen days, the landlord shall forfeit any right to retain any portion of the deposit.

7. In any action or proceeding disputing the amount of any amount of the deposit retained, the landlord shall bear the burden of proof as to the reasonableness of the amount retained.

1 8. Any person who violates the provisions of this section shall be
2 liable for actual damages, provided a person found to have willfully
3 violated this section shall be liable for punitive damages of up to
4 twice the amount of the deposit or advance.

5 9. (a) In circumstances where any sum of money or any other thing of
6 value deposited as security for the full performance by a tenant of the
7 terms of their lease is not turned over to a successor in interest
8 pursuant to section 7-105 of this title, the grantee or assignee of the
9 leased premises shall also be liable to such tenant, upon conveyance of
10 such leased premises, for the repayment of any such security deposit,
11 plus accrued interest, as to which such grantee or assignee has actual
12 knowledge.

13 (b) For purposes of this section, a grantee or assignee of the leased
14 premises shall be deemed to have actual knowledge of any security depos-
15 it which is (i) deposited at any time during the six months immediately
16 prior to closing or other transfer of title in any banking organization
17 pursuant to subdivision two-a of section 7-103 of this title, or (ii)
18 acknowledged in any lease in effect at the time of closing or other
19 transfer of title, or (iii) supported by documentary evidence provided
20 by the tenant or lessee as set forth in paragraph (c) of this subdivi-
21 sion.

22 (c) With respect to any leased premises for which there is no record
23 of security deposit pursuant to subparagraph (i) or (ii) of paragraph
24 (b) of this subdivision, the grantee or assignee of the leased premises
25 shall be obligated to notify the tenant thereof in writing no later than
26 thirty days following the closing or other transfer of title to the fact
27 that there is no record of a security deposit for said leased premises
28 and that unless the tenant within thirty days after receiving notice
29 provides them or it with documentary evidence of deposit, the tenant
30 shall have no further recourse against them or it for said security
31 deposit. For purposes of this subdivision, "documentary evidence" shall
32 be limited to any cancelled check drawn to the order of, a receipt from,
33 or a lease signed by any predecessor in interest, if such predecessor's
34 interest in the leased premises existed on or after the effective date
35 of this paragraph. Except as otherwise provided by subparagraphs (i) and
36 (ii) of paragraph (b) of this subdivision, the grantee or assignee of
37 the leased premises shall not be charged with actual knowledge of the
38 security deposit where the tenant fails within the thirty-day period to
39 provide such documentary evidence. Where the grantee or assignee of the
40 leased premises fails to notify the tenant as specified in this para-
41 graph within thirty days following the closing or other transfer of
42 title, the tenant shall be entitled to produce documentary evidence at
43 any time.

44 (d) The grantee or assignee of the leased premises shall have the
45 right to demand that the grantor or assignor thereof establish an escrow
46 account equal to one month's rent for any leased premises for which
47 there is no record of a security deposit pursuant to paragraph (b) of
48 this subdivision to be used for the purpose of holding harmless the
49 grantee or assignee in any case where, at a date subsequent to the clos-
50 ing or other transfer of title, the tenant gives notice pursuant to
51 paragraph (c) of this subdivision.

52 (e) The liability of a receiver for payment of any security deposit
53 plus accrued interest pursuant to this subdivision shall be limited to
54 the amount of such deposit actually turned over to them or it pursuant
55 to subdivision one of section 7-105 of this title and to the operating

income in excess of expenses generated during their or its period of receivership.

10. Any agreement by a lessee or tenant of a dwelling waiving or modifying their rights as set forth in this section shall be absolutely void.

§ 2. This act shall take effect on the thirtieth day after it shall have become a law and shall apply to any lease or rental agreement or renewal of a lease or rental agreement entered into on or after such date.

PART J

Section 1. Paragraph (b) of subdivision 1 of section 1971 of the real property actions and proceedings law, as amended by chapter 529 of the laws of 2008, is amended to read as follows:

(b) In the case of a vacant dwelling, it is not sealed or continuously guarded, in that admittance to the property may be gained without damaging any portion of the property, as required by law or it was sealed or is continuously guarded by a person other than the owner, a mortgagee, lienor or agent thereof, and ~~either~~ any of the following facts exists:

(i) A vacate order of the department or other governmental agency currently prohibits occupancy of the dwelling; or

(ii) The tax on such premises has been due and unpaid for a period of at least one year; or

(iii) The property has had a zoning, building or property maintenance code violation which has the potential to injure, endanger or unreasonably annoy the health and safety of others that has been continuously outstanding and not remedied for a period of at least one year from the date that the original notice of violation was served upon the property owner pursuant to subdivision four of section three hundred eight of the civil practice law and rules if the owner is a natural person, section three hundred ten of the civil practice law and rules if the owner is a partnership, section three hundred ten-a of the civil practice law and rules if the owner is a limited partnership, section three hundred eleven of the civil practice law and rules if the owner is a corporation, or section three hundred eleven-a of the civil practice law and rules if the owner is a limited liability company; or

§ 2. This act shall take effect immediately.

PART K

Section 1. The real property tax law is amended by adding a new section 457-a to read as follows:

§ 457-a. Exemption for eligible residential property transferred to a low-income household. 1. As used in this section:

(a) "Nonprofit housing organization" means a nonprofit organization exempt from certain taxes pursuant to section 501(c)(3) or section 501(c)(4) of the United States internal revenue code and/or that is incorporated under the not-for-profit corporation law whose primary purpose is the construction or renovation of residential affordable housing for conveyance to households that meet certain income requirements.

(b) "Community land trust" means a nonprofit organization exempt from certain taxes pursuant to section 501(c)(3) or section 501(c)(4) of the United State internal revenue code and/or that is incorporated under the not-for-profit corporation law whose primary purpose is to provide

1 affordable housing by owning land and leasing or selling residential
2 housing situated on that land to households that meet certain income
3 requirements.

4 (c) "Land bank" means an entity created in accordance with article
5 sixteen of the not-for-profit corporation law.

6 (d) "Qualified low-income household" means a household with an income
7 upon initial occupancy of the residential property of not more than
8 eighty percent of the area median income, as annually defined by the
9 United States department of housing and urban development, and which has
10 agreed to occupy such residential property as a primary residence. The
11 nonprofit housing organization, community land trust, land bank, or
12 appropriate governmental entity shall certify that a household meets the
13 income and residency criteria to be considered a qualified low-income
14 household and shall determine the income and assets that shall be used
15 to determine a household's income for eligibility purposes.

16 2. (a) Residential real property subject to a restrictive covenant or
17 declaration, legal requirement, regulatory agreement or other contractu-
18 al obligation with a governmental entity, nonprofit housing organiza-
19 tion, or land bank, and transferred to a qualified low-income household,
20 or where the land is transferred to a community land trust and the resi-
21 dential building situated on the land is or will be leased or sold to a
22 qualified low-income household, shall be exempt as provided in paragraph
23 (b) of this subdivision from taxation levied by or on behalf of any
24 county, city, town, village or school district in which such residential
25 property is located, provided the legislative body or governing board of
26 such county, city, town or village, after public hearing, adopts a local
27 law, or a school district, other than a school district to which article
28 fifty-two of the education law applies, adopts a resolution providing
29 therefor.

30 (b) The real property tax exemption shall be an amount that is not
31 less than twenty-five percent nor more than fifty percent of the
32 assessed value of the property as provided in legislation or resolution
33 pursuant to paragraph (a) of this subdivision.

34 (c) A copy of any such local law or resolution shall be filed with the
35 assessor of such county, city, town, or village who prepares the assess-
36 ment roll on which the taxes of such county, city, town, village, or
37 school district are levied.

38 3. (a) The exemption granted pursuant to this section shall be discon-
39 tinued in any of the following circumstances:

40 (i) in the event that a property granted an exemption pursuant to this
41 section ceases to be used primarily for residential purposes;

42 (ii) in the event that a property granted an exemption pursuant to
43 this section ceases to be used as a primary residence; or

44 (iii) in the event that a property granted an exemption pursuant to
45 this section is transferred to another person or entity, other than to
46 any heirs or distributees of the owner that meet the requirements of
47 being a qualified low-income household at the time of such transfer.

48 (b) Upon determining that an exemption granted pursuant to this
49 section should be discontinued, the assessor shall mail a notice so
50 stating to the owner or owners thereof at the time and in the manner
51 provided by section five hundred ten of this chapter. Such owner or
52 owners shall be entitled to seek administrative and judicial review of
53 such action in the manner provided by law, provided that the burden
54 shall be on such owner or owners to establish eligibility for the
55 exemption.

1 4. Such exemption shall be granted only upon application by the owner
2 or owners of such real property on a form prescribed by the commission-
3 er. The application shall be filed with the assessor of the county,
4 city, town, or village having the power to assess property for taxation
5 on or before the appropriate taxable status date of such county, city,
6 town, or village.

7 5. If satisfied that the applicant is entitled to an exemption pursu-
8 ant to this section, the assessor shall approve the application, and
9 such residential property shall thereafter be exempt from taxation and
10 special ad valorem levies as provided in this section commencing with
11 the assessment roll prepared on the basis of the taxable status date
12 referred to in subdivision four of this section. The assessed value of
13 any exemption granted pursuant to this section shall be entered by the
14 assessor on the assessment roll with the taxable property, with the
15 amount of the exemption shown in a separate column.

16 § 2. This act shall take effect on the sixtieth day after it shall
17 have become a law.

18 PART L

19 Section 1. Paragraph (a) of subdivision 1 of section 33 of the private
20 housing finance law, as amended by chapter 229 of the laws of 1989, is
21 amended to read as follows:

22 (a) Upon the consent of the local legislative body of any municipality
23 in which a project is or is to be located, the real property in a
24 project shall be exempt from local and municipal taxes, other than
25 assessments for local improvements, to the extent of all or part of the
26 value of the property included in such project which represents an
27 increase over the assessed valuation of the real property, both land and
28 improvements, acquired for the project at the time of its acquisition by
29 the limited-profit housing company, provided, however, that the real
30 property in a project acquired for purposes of rehabilitation shall be
31 exempt to the extent of all or part of the value of the property
32 included in such project, and further provided that the amount of such
33 taxes to be paid shall not be less than ten per centum of the annual
34 shelter rent or carrying charges of such project except that for
35 projects located or to be located in a city of a population of one
36 million or more, ~~upon the consent of the local legislative body of the~~
37 ~~municipality, the amount of such taxes to be paid may be set at not less~~
38 ~~than (i) the taxes payable with respect to the real property in such~~
39 ~~project with respect to the year nineteen hundred seventy three, or,~~
40 ~~(ii) if such project was not occupied in such year, not less than ten~~
41 ~~per centum of the annual shelter rent or carrying charges first estab-~~
42 ~~lished pursuant to subdivision one of section thirty-one of this arti-~~
43 ~~cle]~~ the amount of such taxes shall be no more than five per centum of
44 the annual shelter rent or carrying charges of the project. Upon the
45 consent of the local legislative body of a municipality, other than a
46 city with a population of one million or more, in which the project is
47 located, the amount of such taxes may be further reduced to five per
48 centum or less of the annual shelter rent or carrying charges of the
49 project. Any such granted consent to reduce the amount of such taxes
50 shall expire every ten years. If such authorization is not renewed, the
51 rate of taxation shall revert to the level established before the
52 consent was granted. Shelter rent shall mean the total rents received
53 from the occupants of a project less the cost of providing to the occu-
54 pants electricity, gas, heat and other utilities. Total rents shall

1 include rent supplements and subsidies received from the federal govern-
2 ment, the state or a municipality on behalf of such occupants[7] but
3 shall not include interest reduction payments pursuant to subdivision
4 (a) of section two hundred one of the Federal Housing and Urban Develop-
5 ment Act of nineteen hundred sixty-eight. The tax exemption shall oper-
6 ate and continue so long as the mortgage loans of the company, including
7 any additional mortgage loan the proceeds of which are used primarily
8 for the residential portion of the project, which additional loan is
9 approved by the commissioner or the supervising agency, are outstanding.

10 § 2. Paragraph (c) of subdivision 1 of section 33 of the private hous-
11 ing finance law, as amended by chapter 229 of the laws of 1989, is
12 amended to read as follows:

13 (c) Notwithstanding the provisions of paragraphs (a) and (b) of this
14 subdivision, the real property of a state urban development corporation
15 project acquired, owned, constructed, managed or operated by a company
16 incorporated pursuant to the not-for-profit corporation law and this
17 article shall be entitled to all the benefits provided by section four
18 hundred twenty-two of the real property tax law. The real property of a
19 state urban development corporation project, other than a state urban
20 development corporation project acquired, owned, constructed, managed or
21 operated by a company incorporated pursuant to the not-for-profit corpo-
22 ration law and this article, shall be exempt from all local and munici-
23 pal taxes, other than assessments for local improvements, to the extent
24 of the value of the property included in such project as represents an
25 increase over the assessed valuation of the real property, both land and
26 improvements, acquired for the project on the date of its acquisition by
27 the limited-profit housing company, provided that the amount of such
28 taxes to be paid shall not be less than ten per centum of the annual
29 shelter rent or carrying charges of such project, as defined in para-
30 graph (a) hereof, except that in a city with a population of one million
31 or more, the amount of such taxes shall be no more than five per centum
32 of the annual shelter rent or carrying charges of the project. Upon the
33 consent of the local legislative body of the municipality, other than a
34 city with a population of one million or more, in which the project is
35 located, the amount of such taxes may be further reduced to five per
36 centum or less of the annual shelter rent or carrying charges of the
37 project. Any such granted consent to reduce the amount of such taxes
38 shall expire every ten years. If such authorization is not renewed, the
39 rate of taxation shall revert to the level established before the
40 consent was granted. The tax exemption shall operate and continue so
41 long as the mortgage loans of such limited profit housing company,
42 including any additional mortgage loan the proceeds of which are used
43 primarily for the residential portion of the project, which additional
44 loan is approved by the commissioner or the supervising agency, are
45 outstanding and the project is continued to be operated as a limited-
46 profit housing project. If a state urban development corporation project
47 qualifying for tax exemption pursuant to this paragraph is sold, with
48 the approval of the commissioner, to another limited-profit housing
49 company, such successor company shall be entitled to all the benefits of
50 this paragraph. In the event that such sale is to a company incorporated
51 pursuant to the not-for-profit corporation law and this article, such
52 successor company shall be entitled to all the benefits provided by
53 section four hundred twenty-two of the real property tax law.

54 § 3. Paragraph (d) of subdivision 1 of section 33 of the private hous-
55 ing finance law, as amended by chapter 744 of the laws of 1977, is
56 amended to read as follows:

(d) Notwithstanding the provisions of paragraphs (a) and (b) of this subdivision, when a project is financed with a mortgage loan pursuant to this article or article three of this chapter and (i) there is a participation, new loan or investment pursuant to section twenty-three-b of this article or (ii) such mortgage loan is assigned, modified or satisfied pursuant to section twenty-three-a or forty-four-b or subdivision twenty-two-a of section six hundred fifty-four of this chapter, the real property of the project shall be exempt from all local and municipal taxes, other than assessments for local improvements, to the extent of the value of the real property included in such project which represents an increase over the assessed valuation of the real property, both land and improvements, acquired for the project on the date of its original acquisition for the project by the original mortgagor under a mortgage loan pursuant to this article or article three of this chapter, provided that the amount of taxes to be paid on the project shall not be less than ten per centum of the annual shelter rent or carrying charges of such project, as defined in paragraph (a) of this subdivision, except that in a city with a population of one million or more, the amount of such taxes shall be no more than five per centum of the annual shelter rent or carrying charges of the project. Upon the consent of the local legislative body of the municipality, other than a city with a population of one million or more, in which the project is located, the amount of such taxes may be further reduced to five per centum or less of the annual shelter rent or carrying charges of the project. Any such granted consent to reduce the amount of such taxes shall expire every ten years. If such authorization is not renewed, the rate of taxation shall revert to the level established before the consent was granted. Such tax exemption shall commence in each instance from the date when the project becomes subject to a mortgage insured by the federal government and shall operate and continue so long as a mortgage on such project is insured or held by the federal government or so long as the project is thereafter owned by the federal government or so long as any residual indebtedness is outstanding, whichever is longer. When there is a participation, new loan or investment pursuant to section twenty-three-b of this article, such participation, new loan or investment shall be deemed to be the equivalent of a federally insured mortgage for purposes of this paragraph. Nothing contained in this paragraph shall be construed to limit or otherwise impair the benefits available to any company eligible for exemption from taxation pursuant to section thirty-one or section thirty-six-a of this article, section four hundred twenty-two or section four hundred sixty-seven-c of the real property tax law, or section fifty-eight of the public housing law. The foregoing shall not be deemed to authorize any company to receive the benefits of any exemption from taxation in contravention of the provisions of section two of article eighteen of the constitution.

§ 4. Subdivision 4 of section 33 of the private housing finance law, as amended by chapter 229 of the laws of 1989, is amended to read as follows:

4. Notwithstanding the provisions of subdivision one hereof, when a mutual company is organized under this article to facilitate the acquisition of a building by residents thereof, the amount of local and municipal taxes, other than assessments for local improvements, to be paid on the real property included in such project, both land and improvements, shall not exceed twenty per centum of the annual shelter rent or carrying charges of such project, as defined in paragraph (a) of subdivision one hereof; provided, however, that where such acquisition

1 of a building by residents thereof involves the financing of rehabili-
2 tation or other improvement as well as acquisition, upon the consent of
3 the local legislative body of the municipality in which the project is
4 located the amount of such taxes may be further reduced provided that
5 such amount shall not be less than ten per centum of the annual shelter
6 rent or carrying charges of the project, as defined in paragraph (a) of
7 subdivision one hereof; or the company may in lieu of requesting such
8 consent apply for the benefits of the local law, if any, enacted pursu-
9 ant to section four hundred eighty-nine of the real property tax law.
10 Notwithstanding any other provision of this subdivision, in a city with
11 a population of one million or more, the amount of such taxes shall be
12 no more than five per centum of the annual shelter rent or carrying
13 charges of the project. Upon the consent of the local legislative body
14 of the municipality, other than a city with a population of one million
15 or more, in which the project is located, the amount of such taxes may
16 be further reduced to five per centum or less of the annual shelter rent
17 or carrying charges of the project. Any such granted consent to reduce
18 the amount of such taxes shall expire every ten years. If such authori-
19 zation is not renewed, the rate of taxation shall revert to the level
20 established before the consent was granted. Such tax exemption, if any,
21 granted pursuant to this article shall operate and continue so long as a
22 loan made under this article or any subsequent loan approved by the
23 commissioner or the supervising agency to enhance the residential
24 portion of the project and the project is continued to be operated for
25 the purposes set forth in this article is outstanding.

26 § 5. This act shall take effect immediately.

27 PART M

28 Section 1. The section heading of section 485-r of the real property
29 tax law, as added by chapter 406 of the laws of 2015, is amended to read
30 as follows:

31 Residential redevelopment inhibited property exemption[~~;~~ ~~certain~~
32 ~~cities~~].

33 § 2. Subdivision 1 of section 485-r of the real property tax law, as
34 added by chapter 406 of the laws of 2015 and paragraph (f) as amended by
35 chapter 28 of the laws of 2016, is amended to read as follows:

36 1. As used in this section, the following terms shall have the follow-
37 ing meanings:

38 (a) "Redevelopment inhibited property" shall mean a residential prop-
39 erty that has been neglected or abandoned because of the local economic
40 conditions and/or conditions on the property that inhibit such property
41 from being redeveloped by the private sector as described in subdivision
42 three of this section. Redevelopment inhibited property shall not
43 include land that is undeveloped.

44 (b) "Gap financing costs" shall mean the total cost of the property's
45 redevelopment as approved by the city, town, or village minus the
46 increase in the full valuation of the property upon completion of the
47 redevelopment.

48 (c) "Base assessment" shall mean the assessed value of the property on
49 the day the city, town, or village designates the property as redevelop-
50 ment inhibited.

51 (d) "Increased assessment" shall mean the assessed value of the prop-
52 erty as determined by the assessor upon completion of the redevelopment.

(e) "Incremental increase in annual property taxes" shall mean the taxes based on the increased assessment minus the taxes based on the base assessment.

~~[(f) "City" shall mean a city with a population of not less than fifteen thousand two hundred fifty and not more than fifteen thousand five hundred as determined by the latest federal decennial census.]~~

§ 3. Subdivision 2 of section 485-r of the real property tax law, as added by chapter 406 of the laws of 2015, is amended to read as follows:

2. A city, town, or village may, by local law, provide for the exemption of real property from taxation as provided in this section. Subsequent to the adoption of such local law, the county in which such city, town, or village is located may after a public hearing and by local law, and any school district, all or part of which is located in such city, town, or village, may, by resolution, exempt such property from its taxation in the same manner and to the same extent as the city, town, or village has done.

§ 4. Subdivision 3 of section 485-r of the real property tax law, as added by chapter 406 of the laws of 2015, is amended to read as follows:

3. A local law adopted by a city, town, or village pursuant to subdivision two of this section shall designate any property within ~~[the]~~ such city, town, or village's boundaries as a redevelopment inhibited property if one or more of the following are met:

(a) the city, town, or village has acquired title to the property pursuant to article nineteen-A of the real property actions and proceedings law; or

(b) the property has been continuously vacant for a period of at least three years; or

(c) the county, city, town or village in which the property is located has acquired title to the property via foreclosure for unpaid taxes pursuant to article eleven of this chapter; or

(d) the property has outstanding zoning, housing, or uniform code violations and the cost of remedying the violations exceeds the property's value.

§ 5. Subdivision 4 of section 485-r of the real property tax law, as added by chapter 406 of the laws of 2015, is amended to read as follows:

4. (a) Upon the adoption of such local law, redevelopment inhibited property shall be exempt from taxation and special ad valorem levies to the extent of any increase in value attributable to demolition, alteration, rehabilitation, or remediation pursuant to the following requirements:

(i) the demolition, alterations, rehabilitation, and/or remediation shall be permitted by the ~~[city's]~~ applicable bureau of inspection such that building or plumbing permits issued and said demolition, alterations, rehabilitation, and/or remediation shall have met all necessary approvals per the applicable New York state uniform fire prevention and building code, the ~~[city's]~~ applicable municipal code and the ~~[city's]~~ applicable bureau of inspection upon completion; and

(ii) the property for which the exemption is sought shall be ~~[an owner-occupied one-family residence]~~ a one to four-unit residence and occupied as the primary residence of the owner or a tenant; and

(iii) the owner of such property shall file annually an affidavit of residency with the assessor of the city, town, or village on or before the appropriate taxable status date ~~[of such city]~~, confirming continued ~~[owner-occupancy]~~ occupancy of the property by the owner or a tenant as their primary residence; and

(iv) the redevelopment inhibited property is exempt from taxation and special ad valorem levies attributable to the increased assessment minus the taxes and special ad valorem levies imposed on the base assessment. Such exemption shall not apply to special assessments.

(b) In the event the property granted an exemption pursuant to this section ceases to be ~~[owner-]~~occupied as the primary residence of the owner or tenant and/or the affidavit of residency is not filed annually for the approved exemption period, the exemption granted pursuant to this section shall cease.

(c) In the event the property granted an exemption pursuant to this section ceases to be a ~~[one-family]~~ one to four-unit dwelling, the exemption granted pursuant to this section shall cease.

(d) In the event the owner of the property is convicted of a violation or misdemeanor pursuant to New York state uniform fire prevention and building code or the ~~[city's]~~ applicable municipal code, the exemption granted pursuant to this section shall cease.

§ 6. Subdivision 6 of section 485-r of the real property tax law, as added by chapter 406 of the laws of 2015, is amended to read as follows:

6. (a) Such exemption shall be granted only upon application by the owner of such building for the residential redevelopment inhibited property exemption, on a form prescribed by the city, town, or village. Such application must be filed with the assessor of the city, town, or village on or before the appropriate taxable status date ~~[of such city]~~. The application must be filed with the assessor of the city, town, or village within three years from the date of completing the demolition, alterations, rehabilitation, and/or remediation.

(b) The owner filing for such exemption shall not be required to be the owner responsible for completing the demolition, alterations, rehabilitation, and/or remediation.

(c) If the assessor is satisfied that the applicant is entitled to an exemption pursuant to this section, ~~[he or she]~~ such assessor shall approve the application and such real property shall thereafter be exempt from taxation and special ad valorem levies by the city, town, or village commencing with the assessment roll prepared after the taxable status date referred to in this subdivision. The assessed value of any exemption granted pursuant to this section shall be entered by the assessor of the city, town, or village on the assessment roll with the taxable property, with the amount of the exemption shown in a separate column.

(d) Once granted, the residential redevelopment inhibited property exemption runs with the land for the exemption period pursuant to this section.

§ 7. This act shall take effect on the thirtieth day after it shall have become a law.

PART N

Section 1. Notwithstanding any other provision of law, the housing trust fund corporation may provide, for purposes of the neighborhood preservation program, a sum not to exceed \$12,830,000 for the fiscal year ending March 31, 2026. Notwithstanding any other provision of law, and subject to the approval of the New York state director of the budget, the board of directors of the state of New York mortgage agency shall authorize the transfer to the housing trust fund corporation, for the purposes of reimbursing any costs associated with neighborhood preservation program contracts authorized by this section, a total sum not

1 to exceed \$12,830,000, such transfer to be made from (i) the special
2 account of the mortgage insurance fund created pursuant to section
3 2429-b of the public authorities law, in an amount not to exceed the
4 actual excess balance in the special account of the mortgage insurance
5 fund, as determined and certified by the state of New York mortgage
6 agency for the fiscal year 2024-2025 in accordance with section 2429-b
7 of the public authorities law, if any, and/or (ii) provided that the
8 reserves in the project pool insurance account of the mortgage insurance
9 fund created pursuant to section 2429-b of the public authorities law
10 are sufficient to attain and maintain the credit rating (as determined
11 by the state of New York mortgage agency) required to accomplish the
12 purposes of such account, the project pool insurance account of the
13 mortgage insurance fund, such transfer to be made as soon as practicable
14 but no later than June 30, 2025.

15 § 2. Notwithstanding any other provision of law, the housing trust
16 fund corporation may provide, for purposes of the rural preservation
17 program, a sum not to exceed \$5,360,000 for the fiscal year ending March
18 31, 2026. Notwithstanding any other provision of law, and subject to the
19 approval of the New York state director of the budget, the board of
20 directors of the state of New York mortgage agency shall authorize the
21 transfer to the housing trust fund corporation, for the purposes of
22 reimbursing any costs associated with rural preservation program
23 contracts authorized by this section, a total sum not to exceed
24 \$5,360,000, such transfer to be made from (i) the special account of the
25 mortgage insurance fund created pursuant to section 2429-b of the public
26 authorities law, in an amount not to exceed the actual excess balance in
27 the special account of the mortgage insurance fund, as determined and
28 certified by the state of New York mortgage agency for the fiscal year
29 2024-2025 in accordance with section 2429-b of the public authorities
30 law, if any, and/or (ii) provided that the reserves in the project pool
31 insurance account of the mortgage insurance fund created pursuant to
32 section 2429-b of the public authorities law are sufficient to attain
33 and maintain the credit rating (as determined by the state of New York
34 mortgage agency) required to accomplish the purposes of such account,
35 the project pool insurance account of the mortgage insurance fund, such
36 transfer to be made as soon as practicable but no later than June 30,
37 2025.

38 § 3. Notwithstanding any other provision of law, the housing trust
39 fund corporation may provide, for purposes of the rural rental assist-
40 ance program pursuant to article 17-A of the private housing finance
41 law, a sum not to exceed \$23,455,000 for the fiscal year ending March
42 31, 2026. Notwithstanding any other provision of law, and subject to
43 the approval of the New York state director of the budget, the board of
44 directors of the state of New York mortgage agency shall authorize the
45 transfer to the housing trust fund corporation, for the purposes of
46 reimbursing any costs associated with rural rental assistance program
47 contracts authorized by this section, a total sum not to exceed
48 \$23,455,000, such transfer to be made from (i) the special account of
49 the mortgage insurance fund created pursuant to section 2429-b of the
50 public authorities law, in an amount not to exceed the actual excess
51 balance in the special account of the mortgage insurance fund, as deter-
52 mined and certified by the state of New York mortgage agency for the
53 fiscal year 2024-2025 in accordance with section 2429-b of the public
54 authorities law, if any, and/or (ii) provided that the reserves in the
55 project pool insurance account of the mortgage insurance fund created
56 pursuant to section 2429-b of the public authorities law are sufficient

1 to attain and maintain the credit rating, as determined by the state of
2 New York mortgage agency, required to accomplish the purposes of such
3 account, the project pool insurance account of the mortgage insurance
4 fund, such transfer shall be made as soon as practicable but no later
5 than June 30, 2025.

6 § 4. Notwithstanding any other provision of law, the homeless housing
7 and assistance corporation may provide, for purposes of the New York
8 state supportive housing program, the solutions to end homelessness
9 program or the operational support for AIDS housing program, or to qual-
10 ified grantees under such programs, in accordance with the requirements
11 of such programs, a sum not to exceed \$56,381,000 for the fiscal year
12 ending March 31, 2026. The homeless housing and assistance corporation
13 may enter into an agreement with the office of temporary and disability
14 assistance to administer such sum in accordance with the requirements of
15 such programs. Notwithstanding any other provision of law, and subject
16 to the approval of the New York state director of the budget, the board
17 of directors of the state of New York mortgage agency shall authorize
18 the transfer to the homeless housing and assistance corporation, a total
19 sum not to exceed \$56,381,000, such transfer to be made from (i) the
20 special account of the mortgage insurance fund created pursuant to
21 section 2429-b of the public authorities law, in an amount not to exceed
22 the actual excess balance in the special account of the mortgage insur-
23 ance fund, as determined and certified by the state of New York mortgage
24 agency for the fiscal year 2024-2025 in accordance with section 2429-b
25 of the public authorities law, if any, and/or (ii) provided that the
26 reserves in the project pool insurance account of the mortgage insurance
27 fund created pursuant to section 2429-b of the public authorities law
28 are sufficient to attain and maintain the credit rating as determined by
29 the state of New York mortgage agency, required to accomplish the
30 purposes of such account, the project pool insurance account of the
31 mortgage insurance fund, such transfer shall be made as soon as practi-
32 cable but no later than March 31, 2026.

33 § 5. This act shall take effect immediately.

34 PART 0

35 Section 1. Section 3 of part N of chapter 56 of the laws of 2020,
36 amending the social services law relating to restructuring financing for
37 residential school placements, as amended by section 1 of part G of
38 chapter 56 of the laws of 2024, is amended to read as follows:

39 § 3. This act shall take effect immediately [~~and shall expire and be~~
40 ~~deemed repealed April 1, 2025~~]; provided however that the amendments to
41 subdivision 10 of section 153 of the social services law made by section
42 one of this act, shall not affect the expiration of such subdivision and
43 shall be deemed to expire therewith.

44 § 2. This act shall take effect immediately and shall be deemed to
45 have been in full force and effect on and after April 1, 2025.

46 PART P

47 Section 1. The social services law is amended by adding a new section
48 390-n to read as follows:

49 § 390-n. Child care support center; operating certificate required. 1.
50 For purposes of this section, "child care support center" shall mean a
51 business entity that is certified by the office of children and family
52 services to place individuals as substitute caregivers at child day care

1 centers, group family day care homes, family day care homes, or school
2 age child care programs as defined in section three hundred ninety of
3 this title for the purpose of providing child day care.

4 2. The office of children and family services shall be authorized to
5 certify, regulate, and inspect child care support centers. The office of
6 children and family services may, at its discretion, limit the number of
7 operating certificates issued.

8 3. No entity may place substitute caregivers at child day care
9 centers, group family day care homes, family day care homes, or school
10 age child care programs unless it possesses a valid operating certif-
11 icate issued by the office of children and family services.

12 4. Prior to placing an individual as a substitute caregiver at a child
13 day care center, group family day care home, family day care home, or
14 school age child care program as defined in section three hundred ninety
15 of this title for the purpose of providing child day care, a child care
16 support center shall verify that the substitute caregiver has met the:

17 (a) standards and training requirements set forth in section three
18 hundred ninety-a of this title for child day care program employees;

19 (b) criminal history review and background clearance requirements of
20 section three hundred ninety-b of this title for prospective employees
21 of a child day care program; and

22 (c) any other requirements established by the regulations of the
23 office of children and family services.

24 5. Operating certificates issued under this section shall remain valid
25 unless surrendered by the child care support center or revoked by the
26 office of children and family services. The office of children and fami-
27 ly services may revoke an operating certificate at any time upon a
28 determination that the child care support center has not operated in
29 accordance with applicable state or federal law.

30 6. The office of children and family services shall deny an applica-
31 tion for certification of a child care support center if the applicant
32 had an operating certificate revoked within the two years prior to the
33 date of application.

34 § 2. Section 390-b of the social services law is amended by adding a
35 new subdivision 12 to read as follows:

36 12. A child care support center certified pursuant to section three
37 hundred ninety-n of this title shall be authorized to request clearances
38 for substitute caregivers in accordance with this section. Substitute
39 caregivers shall be considered "prospective employees" of a child day
40 care program under subparagraph (iii) of paragraph (a) of subdivision
41 two of this section.

42 § 3. This act shall take effect one year after it shall have become a
43 law. Effective immediately, the addition, amendment, and/or repeal of
44 any rule or regulation necessary for the implementation of this act on
45 its effective date are authorized to be made and completed on or before
46 such effective date.

47 PART Q

48 Section 1. Paragraph (e) of subdivision 5 of section 131-a of the
49 social services law, as added by chapter 1053 of the laws of 1981, is
50 amended and a new paragraph (f-1) is added to read as follows:

51 (e) ~~[Provision]~~ provision of allowances as prescribed by regulations
52 of the department to meet the needs of a pregnant ~~[woman, beginning with~~
53 ~~the fourth month of pregnancy which has been medically verified.]~~
54 person;

1 (f-1) a one-time benefit to public assistance recipients upon the
2 birth of a new child, as prescribed by regulations of the department.
3 § 2. This act shall take effect on the one hundred eightieth day after
4 it shall have become a law.

PART R

6 Section 1. Paragraphs (a), (b), (c) and (d) of subdivision 1 of
7 section 131-o of the social services law, as amended by section 1 of
8 part H of chapter 56 of the laws of 2024, are amended to read as
9 follows:

10 (a) in the case of each individual receiving family care, an amount
11 equal to at least [~~\$181.00~~] \$186.00 for each month beginning on or after
12 January first, two thousand [~~twenty-four~~] twenty-five.

13 (b) in the case of each individual receiving residential care, an
14 amount equal to at least [~~\$208.00~~] \$213.00 for each month beginning on
15 or after January first, two thousand [~~twenty-four~~] twenty-five.

16 (c) in the case of each individual receiving enhanced residential
17 care, an amount equal to at least [~~\$249.00~~] \$255.00 for each month
18 beginning on or after January first, two thousand [~~twenty-four~~] twenty-
19 five.

20 (d) for the period commencing January first, two thousand [~~twenty-~~
21 ~~five~~] twenty-six, the monthly personal needs allowance shall be an
22 amount equal to the sum of the amounts set forth in subparagraphs one
23 and two of this paragraph:

24 (1) the amounts specified in paragraphs (a), (b) and (c) of this
25 subdivision; and

26 (2) the amount in subparagraph one of this paragraph, multiplied by
27 the percentage of any federal supplemental security income cost of
28 living adjustment which becomes effective on or after January first, two
29 thousand [~~twenty-five~~] twenty-six, but prior to June thirtieth, two
30 thousand [~~twenty-five~~] twenty-six, rounded to the nearest whole dollar.

31 § 2. Paragraphs (a), (b), (c), (d), (e) and (f) of subdivision 2 of
32 section 209 of the social services law, as amended by section 2 of part
33 H of chapter 56 of the laws of 2024, are amended to read as follows:

34 (a) On and after January first, two thousand [~~twenty-four~~]
35 twenty-five, for an eligible individual living alone, [~~\$1,030.00~~]
36 \$1,054.00; and for an eligible couple living alone, [~~\$1,510.00~~]
37 \$1,554.00.

38 (b) On and after January first, two thousand [~~twenty-four~~]
39 twenty-five, for an eligible individual living with others with or with-
40 out in-kind income, [~~\$966.00~~] \$990.00; and for an eligible couple living
41 with others with or without in-kind income, [~~\$1,461.00~~] \$1,496.00.

42 (c) On and after January first, two thousand [~~twenty-four~~]
43 twenty-five, (i) for an eligible individual receiving family care,
44 [~~\$1,209.48~~] \$1,233.48 if [~~he or she~~] such individual is receiving such
45 care in the city of New York or the county of Nassau, Suffolk, Westches-
46 ter or Rockland; and (ii) for an eligible couple receiving family care
47 in the city of New York or the county of Nassau, Suffolk, Westchester or
48 Rockland, two times the amount set forth in subparagraph (i) of this
49 paragraph; or (iii) for an eligible individual receiving such care in
50 any other county in the state, [~~\$1,171.48~~] \$1,195.48; and (iv) for an
51 eligible couple receiving such care in any other county in the state,
52 two times the amount set forth in subparagraph (iii) of this paragraph.

53 (d) On and after January first, two thousand [~~twenty-four~~]
54 twenty-five, (i) for an eligible individual receiving residential care,

1 ~~[\$1,378.00]~~ \$1,402.00 if ~~[he or she]~~ such individual is receiving such
2 care in the city of New York or the county of Nassau, Suffolk, Westches-
3 ter or Rockland; and (ii) for an eligible couple receiving residential
4 care in the city of New York or the county of Nassau, Suffolk, Westches-
5 ter or Rockland, two times the amount set forth in subparagraph (i) of
6 this paragraph; or (iii) for an eligible individual receiving such care
7 in any other county in the state, ~~[\$1,348.00]~~ \$1,372.00; and (iv) for an
8 eligible couple receiving such care in any other county in the state,
9 two times the amount set forth in subparagraph (iii) of this paragraph.

10 (e) On and after January first, two thousand ~~[twenty-four]~~
11 twenty-five, (i) for an eligible individual receiving enhanced residen-
12 tial care, ~~[\$1,637.00]~~ \$1,661.00; and (ii) for an eligible couple
13 receiving enhanced residential care, two times the amount set forth in
14 subparagraph (i) of this paragraph.

15 (f) The amounts set forth in paragraphs (a) through (e) of this subdi-
16 vision shall be increased to reflect any increases in federal supple-
17 mental security income benefits for individuals or couples which become
18 effective on or after January first, two thousand ~~[twenty-five]~~ twenty-
19 six but prior to June thirtieth, two thousand ~~[twenty-five]~~ twenty-six.

20 § 3. This act shall take effect December 31, 2025.

21 PART S

22 Section 1. Section 4 of part W of chapter 54 of the laws of 2016
23 amending the social services law relating to the powers and duties of
24 the commissioner of social services relating to the appointment of a
25 temporary operator, as amended by section 1 of part T of chapter 56 of
26 the laws of 2022, is amended to read as follows:

27 § 4. This act shall take effect immediately and shall be deemed to
28 have been in full force and effect on and after April 1, 2016, provided
29 further that this act shall expire and be deemed repealed March 31,
30 ~~[2025]~~ 2028.

31 § 2. This act shall take effect immediately.

32 PART T

33 Section 1. Article 19-D of the labor law, as added by chapter 88 of
34 the laws of 2021, is amended to read as follows:

35 ARTICLE 19-D

36 MINIMUM WAGE RATES FOR COVERED AIRPORT WORKERS

37 Section 696-a. Definitions.

38 ~~[696-b. Certification to the commissioner.~~

39 ~~696-c.]~~ 696-b. Minimum wage rate for covered airport workers.

40 ~~[696-d.]~~ 696-c. Commissioner's powers of investigation.

41 ~~[696-e.]~~ 696-d. Records of employers.

42 ~~[696-f.]~~ 696-e. Penalties.

43 ~~[696-g.]~~ 696-f. Civil action.

44 ~~[696-h.]~~ 696-g. Regulations.

45 ~~[696-i.]~~ 696-h. Savings clause.

46 § 696-a. Definitions. As used in this article: 1. "Covered airport
47 location" means John F. Kennedy International Airport and LaGuardia
48 Airport or any location used to perform ~~[airline catering]~~ work ~~[as such~~
49 ~~work is described in subparagraph (iv) of paragraph (a) of subdivision~~

~~two of this section]~~ related to the preparation or delivery of food for consumption on airplanes departing from John F. Kennedy International Airport or LaGuardia Airport.

2. (a) "Covered airport worker" means any person employed to perform work at a covered airport location ~~[provided at least one-half of the employee's time during any workweek is performed at a covered airport location and who works in one of the following covered categories:]~~

~~(i) Cleaning and related services, which shall mean:~~

~~(1) building cleaning, including warehouse, kitchen, and terminal cleaning, including common areas, gateways, gates, lounges, clubs, concession areas, terminal entryways from ramp and where planes park at the gate, and other nearby facilities used for the preparation, packaging, and storage of inflight meals and supplies; and~~

~~(2) aircraft and cabin cleaning, including lavatory and water disposal and replenishment, lift truck driving and helping, dispatching, cleaning crew driving, and sorting and packing of inflight materials, such as blankets, pillows, and magazines;~~

~~(ii) Security related services, including catering security, escorting, escort security, passenger aircraft security, fire guarding, terminal security, baggage security, traffic security, cargo screening, including guarding, warehouse security, concessions and airport lounge security, security dispatch, and security at nearby facilities used for the preparation, packaging, and storage of inflight meals; or~~

~~(iii) In terminal and passenger handling services, including baggage handling, sky cap services, wheelchair attending, wheelchair dispatching, customer and passenger services, line queue, identification checking, porter services for baggage, and passenger and employee shuttle driving.~~

~~(iv) Airline catering, including work related to the preparation or delivery of food or beverage for consumption on airplanes departing from a covered airport location or related location; or~~

~~(v) Airport lounge services, including food and retail services].~~

(b) "Covered airport worker" shall not include ~~[anyone who works in one of the following non-covered categories:]~~

~~(i) Non-cleaning and security related cargo and ramp services, including ramp baggage and cargo handling, load control and ramp communication, aircraft mechanics and fueling of aircraft, provision of cooling, heating, and power, passenger aircraft servicing, cabin equipment maintenance, guiding aircraft in and out of gates, and gate side aircraft maintenance;~~

~~(ii) Ramp and tarmac maintenance services, including operation of snow plows, ramp cleaning vehicles, and tarmac sweepers;~~

~~(iii) Concession services, including food service, which includes food and beverage service, wait service, and cashiers, and retail service, which includes news, and gifts, and duty free;~~

~~(c) "Covered airport worker" shall not include direct employees of the Port Authority of New York and New Jersey, or any workers hired by companies contracted by the Port Authority of New York and New Jersey, that are performing work under such contract]~~ persons employed in an executive, administrative, or professional capacity as defined in subparagraph one of paragraph (a) of section thirteen of the Fair Labor Standards Act of 1938 (29 U.S.C. s.213 et seq.), or persons employed by the Port Authority of New York and New Jersey or any other governmental agency.

~~(d)]~~ (c) "Covered airport worker" shall [include only:

~~(i) Employees employed at a covered airport location on December thirtieth, two thousand twenty and who are working an average of at least thirty hours per week; and~~

~~(ii) Employees employed at a covered airport location on or after January first, two thousand twenty-three and who are working for an average of thirty hours per week.~~

~~(e) "Covered airport worker" shall also not include persons employed in an executive, administrative, or professional capacity as defined in subparagraph one of paragraph (a) of section thirteen of the Fair Labor Standards Act of 1938]~~ for any week, not include an employee working at a covered airport location during that week, for less than thirty hours.

3. "Successor airport employer" means any ~~[person who furnishes cleaning and related services, security related services, in terminal and passenger handling services, airline catering, or airport lounge services]~~ employer that employs covered airport workers who provide services at a covered airport location that are substantially similar to those that were provided by covered airport workers previously employed by another employer at such covered airport location.

4. "Employer" means any person, corporation, limited liability company, or association employing any individual in an occupation, industry, trade, business or service. The term "employer" shall not include a governmental agency.

5. ~~[The "standard wage rate" means the greater of:~~

~~(a) any minimum wage rate that would be otherwise applicable to covered airport workers established by article nineteen of this chapter; or~~

~~(b) any otherwise applicable minimum wage rate established through a policy of the Port Authority of New York and New Jersey]~~ The "applicable standard rate" means the wage and benefit rates designated by the commissioner based on the determinations made by the General Services Administration pursuant to the federal McNamara-O'Hara Service Contract Act of 1965 (41 U.S.C. 6701 et seq.), for the appropriate localities and classifications of building service employees; provided, however, that in no event shall the prevailing wage rate applicable to a covered airport worker on and after January first, two thousand twenty-five and every year thereafter be less than the following:

(a) any otherwise applicable minimum wage rate established through a regulation of the Port Authority of New York and New Jersey; and

(b) an amount of supplemental wages or a supplemental healthcare contribution equal to the rate for health and welfare for all occupations, designated by the commissioner based on the determinations made by the federal department of labor pursuant to the McNamara-O'Hara Service Contract Act of 1965 (41 U.S.C. 6701 et seq.) for the geographic region in which the covered airport location is situated and in effect on the date of the designation by the commissioner; and

(c) paid leave equal to the paid leave requirements designated by the commissioner the immediately preceding January first, based on the determinations made by the General Services Administration pursuant to the McNamara-O'Hara Service Contract Act of 1965 (41 U.S.C. 6701 et seq.).

6. ~~[The "standard benefits supplement rate" means an hourly supplement of four dollars and fifty four cents furnished to an employee by providing at least four dollars and fifty four cents per hour toward the cost of minimum essential coverage under an eligible employer-sponsored plan as defined in treasury regulation section 1.5000A-2(c)(1) beginning on July first, two thousand twenty-one. The standard benefits supplement~~

~~rate shall apply only to the first forty hours worked by each covered airport worker in each week and shall not apply to any overtime hours worked by any covered airport worker. The standard benefits supplement rate shall apply to any paid leave taken by a covered airport worker that does not exceed forty hours in a week]~~ "Commissioner" means the commissioner of labor of the state of New York.

~~[7. The "applicable standard rate" shall mean a combination of (a) the standard wage rate; and (b) the standard benefits supplemental rate.~~

~~§ 696-b. Certification to the commissioner. 1. No later than March thirty-first, two thousand twenty-one, each employer of a covered airport worker shall submit to the commissioner a sworn statement certifying the total number of workers employed by such employer at a covered airport location to perform cleaning and related services, security related services, in terminal and passenger handling services, airline catering, or airport lounge services, at a covered airport location on December thirtieth, two thousand twenty, and identifying the number that is equal to eighty percent of such total number of employees, which shall be the December thirtieth, two thousand twenty benchmark for the purposes of this section. Such statement shall further include an affirmation that such employer will ensure that the number of covered airport workers it employs at a covered airport location between July first, two thousand twenty-one and December thirty-first, two thousand twenty-two is no less than the December thirtieth, two thousand twenty benchmark. Such sworn statement shall be provided by the commissioner upon request by any airport worker performing cleaning and related services, security related services, in terminal and passenger handling services, airline catering, or airport lounge services, at a covered airport location or any representative of such airport workers. Prior to employing any airport workers to perform cleaning and related services, security related services, in terminal and passenger handling services, airline catering, or airport lounge services, at a covered airport location, any successor airport employer shall obtain the applicable December thirtieth, two thousand twenty benchmark from the commissioner and submit to the commissioner an affirmation that such employer will ensure that the number of covered airport workers it employs at a covered airport location between July first, two thousand twenty-one and December thirty-first, two thousand twenty-two is no less than the December thirtieth, two thousand twenty benchmark.~~

~~2. Each employer of any covered airport worker employed at a covered airport location on or after January first, two thousand twenty-three shall submit to the commissioner, in a form and manner proscribed by the commissioner, a sworn statement affirming that such employer will ensure, where applicable, that the proportion of covered airport workers in each classification it employs to work an average of at least thirty hours per week at a covered airport location is the same as such proportion was compared to all workers in the same classification working at such covered airport location in the calendar year two thousand nineteen workforce. The commissioner shall publish a list of all covered classifications with the corresponding proportions of all workers employed to work an average of at least thirty hours a week compared to all workers in the same classification employed to work at each covered airport location in the calendar year two thousand nineteen. The commissioner shall be empowered to promulgate rules or regulations to determine the method and accounting for such information and to verify its accuracy, including the ability to establish a presumed proportion where records are missing or unavailable and provided further that such full-time~~

~~levels shall be no less than such December thirtieth, two thousand twenty benchmark. If such proportion is not maintained, consistent with such rules or regulations promulgated by the commissioner, then the hours worked by such part time workers, which are outside of such proportion, shall be subject to the provisions of this section as if they worked an average of at least thirty hours per week at a covered airport location and were otherwise a covered airport worker.~~

~~3. Each employer of a covered airport worker employed at a covered airport location on December thirtieth, two thousand twenty and who is working an average of at least thirty hours per week shall provide such covered airport worker the ability to begin or change enrollment in an eligible employer sponsored plan as defined in treasury regulation section 1.5000A-2(c)(1) for coverage beginning on July first, two thousand twenty-one.~~

~~4. Each employer of any other covered airport worker at a covered airport location shall provide such covered airport worker the ability to begin or change enrollment in an eligible employer sponsored plan as defined in treasury regulation section 1.5000A-2(c)(1) for coverage beginning no later than thirty days after becoming a covered airport worker.]~~

§ ~~696-e.~~ 696-b. Minimum wage rate for covered airport workers. All ~~covered~~ employers at a covered airport location shall ensure that every covered airport worker is compensated at a rate that is no less than the applicable standard rate. Nothing in this article shall alter or limit any employer's obligation to pay any otherwise applicable prevailing wage under article eight or nine of this chapter.

§ ~~696-d.~~ 696-c. Commissioner's powers of investigation. The commissioner or ~~his or her~~ such commissioner's authorized representative shall have the power to:

1. investigate the compensation of covered airport workers in the state;

2. enter the place of business or employment of any employer for the purpose of (a) examining and inspecting any and all books, registers, payrolls, and other records that in any way relate to or have a bearing upon the compensation provided to, or the hours worked by any employees, and (b) ascertaining whether the provisions of this article and the rules and regulations promulgated hereunder are being complied with; and

3. require from any employer full and correct statements and reports in writing, at such times as the commissioner may deem necessary, of the compensation provided to and the hours by such employer's employees.

§ ~~696-e.~~ 696-d. Records of employers. For every employee covered by this article, every employer shall establish, maintain, and preserve for not less than six years contemporaneous, true, and accurate payroll records showing for each week worked the hours worked, the compensation provided, plus such other information as the commissioner deems material and necessary. For all covered airport workers who are not exempt from overtime compensation as established in the commissioner's minimum wage orders or otherwise provided by law, rule, or regulation, the payroll records shall include the compensation provided and the regular hourly rate or rates of pay, the overtime rate or rates of pay, the number of regular hours worked, the number of overtime hours worked and the cost of benefits and/or benefit supplements. On demand, the employer shall furnish to the commissioner or ~~his or her~~ such commissioner's duly authorized representative a sworn statement of the hours worked, rate or rates of compensation, for each covered airport worker, plus such other information as the commissioner deems material and necessary. Every

1 employer shall keep such records open to inspection by the commissioner
2 or ~~[his or her]~~ such commissioner's duly authorized representative at
3 any reasonable time. Every employer of a covered airport worker shall
4 keep a digest and summary of this article which shall be prepared by the
5 commissioner, posted in a conspicuous place in ~~[his or her]~~ their estab-
6 lishment and shall also keep posted such additional copies of said
7 digest and summary as the commissioner prescribes. Employers shall, on
8 request, be furnished with copies of this article and of orders, and of
9 digests and summaries thereof, without charge. Employers shall permit
10 the commissioner or ~~[his or her]~~ such commissioner's duly authorized
11 representative to question without interference any employee of such
12 employer in a private location at the place of employment and during
13 working hours in respect to the wages paid to and the hours worked by
14 such employee or other employees.

15 § ~~[696-f.]~~ 696-e. Penalties. 1. If the commissioner finds that any
16 employer has violated any provision of this article or of a rule or
17 regulation promulgated thereunder, the commissioner may, after an oppor-
18 tunity for a hearing, and by an order which shall describe particularly
19 the nature of the violation, assess the employer a civil penalty of not
20 more than ten thousand dollars for the first such violation within six
21 years, not more than twenty thousand dollars for a second violation
22 within six years and not more than fifty thousand dollars for a third or
23 subsequent violation within six years. Such penalty shall be paid to the
24 commissioner for deposit in the treasury of the state. In assessing the
25 amount of the penalty, the commissioner shall give due consideration to
26 the size of the employer's business, the good faith ~~[of the employer]~~
27 basis of the employer to believe that its conduct was in compliance with
28 the law, the gravity of the violation, the history of previous
29 violations and the failure to comply with record-keeping or other
30 requirements.

31 2. Any order issued under subdivision one of this section shall be
32 deemed a final order of the commissioner and not subject to review by
33 any court or agency unless the employer files a petition with the indus-
34 trial board of appeals for a review of the order, pursuant to section
35 one hundred one of this chapter.

36 3. The civil penalty provided for in this section shall be in addition
37 to and may be imposed concurrently with any other remedy or penalty
38 provided for in this chapter.

39 4. Upon a showing by an employee organization, the commissioner may
40 investigate by examining payroll records whether an employer withheld
41 hours of work to employees for the purpose of reducing the employer's
42 obligations under this article. If, after the opportunity for a hearing,
43 the commissioner determines that an employer withheld hours of work to
44 employees for the purpose of reducing the employer's obligations under
45 this article, the commissioner may, in addition to any other penalty
46 available, also require that the employer pay the ~~[standard-benefits~~
47 supplement] applicable standard rate to all of the employer's employees,
48 regardless of the number of hours worked by the employees.

49 § ~~[696-g.]~~ 696-f. Civil action. 1. On behalf of any employee paid
50 less than the applicable standard rate to which the employee is entitled
51 under the provisions of this article, the commissioner may bring any
52 legal action necessary, including administrative action, to collect such
53 claim, and the employer shall be required to pay the full amount of the
54 underpayment, plus costs, and unless the employer proves a good faith
55 basis to believe that its underpayment was in compliance with the law,
56 an additional amount as liquidated damages. Liquidated damages shall be

1 calculated by the commissioner as no more than one hundred percent of
2 the total amount of underpayments found to be due the employee. In any
3 action brought by the commissioner in a court of competent jurisdiction,
4 liquidated damages shall be calculated as an amount equal to one hundred
5 percent of underpayments found to be due the employee.

6 2. Notwithstanding any other provision of law, an action to recover
7 upon a liability imposed by this article must be commenced within six
8 years. The statute of limitations shall be tolled from the date an
9 employee files a complaint with the commissioner or the commissioner
10 commences an investigation, whichever is earlier, until an order to
11 comply issued by the commissioner becomes final, or where the commis-
12 sioner does not issue an order, until the date on which the commissioner
13 notifies the complainant that the investigation has concluded.

14 3. In any civil action by the commissioner, the commissioner shall
15 have the right to collect attorneys' fees and costs incurred in enforc-
16 ing any court judgment. Any judgment or court order awarding remedies
17 under this section shall provide that if any amounts remain unpaid upon
18 the expiration of ninety days following issuance of judgment, or ninety
19 days after expiration of the time to appeal and no appeal therefrom is
20 then pending, whichever is later, the total amount of judgment shall
21 automatically increase by fifteen percent.

22 § ~~[696-h.]~~ 696-g. Regulations. ~~[1.]~~ The commissioner may promulgate
23 such regulations as ~~[he or she]~~ such commissioner deems appropriate to
24 carry out the purposes of this article and to safeguard minimum compen-
25 sation standards.

26 § ~~[696-i.]~~ 696-h. Savings clause. 1. If any provision of this article
27 or the application thereof to any person, occupation or circumstance is
28 held invalid, the remainder of the article and the application of such
29 provision to other persons, employees, occupations, or circumstances
30 shall not be affected thereby.

31 2. If any clause, sentence, paragraph, subdivision, section or part of
32 this article shall be adjudged by any court of competent jurisdiction to
33 be invalid, such judgment shall not affect, impair, or invalidate the
34 remainder thereof, but shall be confined in its operation to the clause,
35 sentence, paragraph, subdivision, section or part thereof directly
36 involved in the controversy in which such judgment shall have been
37 rendered. It is hereby declared to be the intent of the legislature that
38 this article would have been enacted even if such invalid provisions had
39 not been included herein.

40 ~~[3. If section six hundred ninety six a, section six hundred ninety~~
41 ~~six b, or section six hundred ninety six c of this article or any~~
42 ~~portion thereof shall be adjudged, whether by final judgment, a tempo-~~
43 ~~rary restraining order, or a preliminary injunction, by any court of~~
44 ~~competent jurisdiction to be preempted by federal law, then the "stand-~~
45 ~~ard benefits supplement rate" defined in subdivision six of section six~~
46 ~~hundred ninety six a of this article shall immediately mean the follow-~~
47 ~~ing:~~

48 ~~(a) An hourly supplement of four dollars and fifty four cents~~
49 ~~furnished to an employee by providing at least four dollars and fifty-~~
50 ~~four cents per hour beginning on July first, two thousand twenty one in~~
51 ~~one of the following ways: (i) in the form of health and/or other bene-~~
52 ~~fits, not including paid leave, that cost the employer the entire~~
53 ~~required hourly supplemental amount; (ii) by providing a portion of the~~
54 ~~required hourly supplement in the form of health and/or other benefits,~~
55 ~~not including paid leave, and the balance in cash; or (iii) by providing~~
56 ~~the entire supplement in cash.~~

~~(b) The value of such supplement shall be no less than four dollars and fifty four cents per hour.~~

~~(c) The standard benefits supplement rate shall apply only to the first forty hours worked by each covered airport worker in each week and shall not apply to any overtime hours worked by any covered airport worker.~~

~~(d) The standard benefits supplement rate shall apply to any paid leave taken by a covered airport worker that does not exceed forty hours in a week.~~

~~4. If section six hundred ninety-six-a, section six hundred ninety-six-b, or section six hundred ninety-six-c of this article or any portion thereof shall be adjudged by any preliminary relief, including a temporary restraining order or a preliminary injunction, by any court of competent jurisdiction to be preempted by federal law but is later adjudged by the same court not to be preempted by federal law in a final judgment, then the definition of "standard benefits supplement rate" shall immediately revert to the definition stated in subdivision six of section six hundred ninety-six-a of this article.]~~

§ 2. This act shall take effect on the one hundred eightieth day after it shall have become a law.

PART U

Section 1. Subdivision 1-a of section 198 of the labor law, as amended by chapter 362 of the laws of 2015, is amended to read as follows:

1-a. On behalf of any employee paid less than the wage to which [~~he or she is~~] they are entitled under the provisions of this article, the commissioner may bring any legal action necessary, including administrative action, to collect such claim and as part of such legal action, in addition to any other remedies and penalties otherwise available under this article, the commissioner shall assess against the employer the full amount of any such underpayment, and an additional amount as liquidated damages, unless the employer proves a good faith basis for believing that its underpayment of wages was in compliance with the law. Liquidated damages shall be calculated by the commissioner as no more than one hundred percent of the total amount of wages found to be due, except such liquidated damages may be up to three hundred percent of the total amount of the wages found to be due for a willful violation of section one hundred ninety-four of this article. In any action instituted in the courts upon a wage claim by an employee or the commissioner in which the employee prevails, the court shall allow such employee to recover the full amount of any underpayment, all reasonable attorney's fees, prejudgment interest as required under the civil practice law and rules, and, unless the employer proves a good faith basis to believe that its underpayment of wages was in compliance with the law, an additional amount as liquidated damages equal to one hundred percent of the total amount of the wages found to be due, except such liquidated damages may be up to three hundred percent of the total amount of the wages found to be due for a willful violation of section one hundred ninety-four of this article. Notwithstanding the provisions of this subdivision, liquidated damages shall not be applicable to violations of paragraph a of subdivision one of section one hundred ninety-one of this article where the employer paid the employee wages on a regular payday, no less frequently than semi-monthly. Such violations shall be subject to damages as follows:

1 (i) no more than one hundred percent of the lost interest found to be
2 due for the delayed payment of wages calculated using a daily interest
3 rate for each day payment is late based on the annual rate of interest
4 then in effect, as prescribed by the superintendent of financial
5 services pursuant to section fourteen-a of the banking law for the
6 employer's first violation; or

7 (ii) three hundred percent of the lost interest found to be due for
8 the delayed payment of wages calculated using a daily interest rate for
9 each day payment is late based on the annual rate of interest then in
10 effect, as prescribed by the superintendent of financial services pursu-
11 ant to section fourteen-a of the banking law for any employer subject to
12 a previous finding and order for such violation of paragraph a of subdivi-
13 vision one of section one hundred ninety-one of this article for which
14 no proceeding for administrative or judicial review as provided in this
15 chapter is pending and the time for initiation of such proceeding shall
16 have expired and relating to employees performing the same work; or

17 (iii) for conduct occurring after the effective date of this para-
18 graph, liquidated damages equal to one hundred percent of the total
19 amount of wages found to be due in violation of paragraph a of subdivi-
20 sion one of section one hundred ninety-one of this article for any
21 employer who, after the effective date of this paragraph, has been
22 subject to two or more previous findings and orders for violations of
23 paragraph a of subdivision one of section one hundred ninety-one of this
24 article for which no proceeding for administrative or judicial review as
25 provided in this chapter is pending and the time for initiation of such
26 proceeding shall have expired and relating to employees performing the
27 same work.

28 For purposes of this subdivision, an order shall mean a single final
29 order or determination made by the commissioner or a court of competent
30 jurisdiction, regardless of the number of employees or the time period
31 that was subject to such order.

32 § 2. This act shall take effect immediately and shall apply to causes
33 of action pending or commenced on or after such date.

34 PART V

35 Section 1. Subdivision 3 of section 218 of the labor law, as amended
36 by chapter 2 of the laws of 2015, is amended to read as follows:

37 3. (a) Provided that no proceeding for administrative or judicial
38 review as provided in this chapter shall then be pending and the time
39 for initiation of such proceeding shall have expired, the commissioner
40 may file with the county clerk of the county where the employer resides
41 or has a place of business the order of the commissioner, or the deci-
42 sion of the industrial board of appeals containing the amount found to
43 be due including the civil penalty, if any, and at the commissioner's
44 discretion, an additional fifteen percent damages upon any outstanding
45 monies owed. [A+] Notwithstanding any provision to the contrary, in
46 execution of any order or decision filed by the commissioner pursuant to
47 this section, the commissioner shall have all the powers conferred upon
48 sheriffs by article twenty-five of the civil practice law and rules, but
49 the commissioner shall be entitled to no fee or compensation in excess
50 of the actual expenses paid in the performance of such duty. Addi-
51 tionally, at the request of an employee, the commissioner shall assign,
52 without consideration or liability, that portion of the filed order that
53 constitutes wages, wage supplements, interest on wages or wage supple-
54 ments, or liquidated damages due that employee, to that employee and may

1 file an assignment or order in that amount in the name of that employee
2 with the county clerk of the county where the employer resides or has a
3 place of business. The filing of such assignment, order or decision
4 shall have the full force and effect of a judgment duly docketed in the
5 office of such clerk. The assignment[, ~~order or decision~~] may be
6 enforced [~~by and in the name of the commissioner, or~~] by the employee[,]
7 in the same manner, and with like effect, as that prescribed by the
8 civil practice law and rules for the enforcement of a money judgment.

9 (b) In addition and as an alternative to any other remedy provided by
10 this section and provided that no proceeding for administrative or judi-
11 cial review as provided in this chapter shall then be pending and the
12 time for initiation of such proceeding shall have expired, the commis-
13 sioner may issue a warrant under the commissioner's official seal,
14 directed to the sheriff of any county, commanding the sheriff to levy
15 upon and sell the real and personal property that may be found within
16 the sheriff's county of an employer who has defaulted in the payment of
17 any sum determined to be due from such employer for the payment of such
18 sum together with interest, penalties, and the cost of executing the
19 warrant, and to return such warrant to the commissioner and to pay into
20 the fund the money collected by virtue thereof within sixty days after
21 the receipt of such warrant. The sheriff shall, within five days after
22 the receipt of the warrant, file with the clerk of the county a copy
23 thereof, and thereupon such clerk shall enter in the judgment docket the
24 name of the employer mentioned in the warrant and the amount of the
25 contribution, interest, and penalties for which the warrant is issued
26 and the date when such copy is filed. Thereupon the amount of such
27 warrant so docketed shall become a lien upon the title to and interest
28 in real property and chattels of the employer against whom the warrant
29 is issued in the same manner as a judgment duly docketed in the office
30 of such clerk. The sheriff shall then proceed upon the warrant in the
31 same manner, and with like effect, as that provided by law in respect to
32 executions issued against property upon judgments of a court of record,
33 and the sheriff shall be entitled to the same fees, which they may
34 collect in the same manner, for the sheriff's services in executing the
35 warrant.

36 (c) In the discretion of the commissioner, a warrant of like terms,
37 force, and effect may be issued and directed to any officer or employee
38 of the department of labor who may file a copy of such warrant with the
39 clerk of any county in the state, and thereupon each such clerk shall
40 docket it and it shall become a lien in the same manner and with the
41 same force and effect as hereinbefore provided with respect to a warrant
42 issued and directed to and filed by a sheriff; and in the execution
43 thereof such officer or employee shall have all the powers conferred by
44 law upon sheriffs, but they shall be entitled to no fee or compensation
45 in excess of the actual expenses paid in the performance of such duty.
46 If a warrant is returned not satisfied in full, the commissioner shall
47 have the same remedies to enforce the amount thereof as if the commis-
48 sioner had recovered judgment for the same.

49 § 2. Subdivision 3 of section 219 of the labor law, as amended by
50 chapter 2 of the laws of 2015, is amended to read as follows:

51 3. (a) Provided that no proceeding for administrative or judicial
52 review as provided in this chapter shall then be pending and the time
53 for initiation of such proceeding shall have expired, the commissioner
54 may file with the county clerk of the county where the employer resides
55 or has a place of business the order of the commissioner or the decision
56 of the industrial board of appeals containing the amount found to be

1 due, including, at the commissioner's discretion, an additional fifteen
2 percent damages upon any outstanding monies owed. ~~[A]~~ Notwithstanding
3 any provision to the contrary, in execution of any order or decision
4 filed by the commissioner pursuant to this section, the commissioner
5 shall have all the powers conferred upon sheriffs by article twenty-five
6 of the civil practice law and rules, but the commissioner shall be enti-
7 tled to no fee or compensation in excess of the actual expenses paid in
8 the performance of such duty. Additionally, at the request of an employ-
9 ee, the commissioner shall assign, without consideration or liability,
10 that portion of the filed order that constitutes wages, wage supple-
11 ments, interest on wages or wage supplements, or liquidated damages due
12 the employee, to that employee and may file an assignment or order in
13 that amount in the name of such employee with the county clerk of the
14 county where the employer resides or has a place of business. The filing
15 of such assignment, order or decision shall have the full force and
16 effect of a judgment duly docketed in the office of such clerk. The
17 assignment~~[, order or decision]~~ may be enforced ~~[by and in the name of~~
18 ~~the commissioner, or]~~ by the employee~~[,]~~ in the same manner, and with
19 like effect, as that prescribed by the civil practice law and rules for
20 the enforcement of a money judgment.

21 (b) In addition and as an alternative to any other remedy provided by
22 this section and provided that no proceeding for administrative or judi-
23 cial review as provided in this chapter shall then be pending and the
24 time for initiation of such proceeding shall have expired, the commis-
25 sioner may issue a warrant under the official seal of the commissioner,
26 directed to the sheriff of any county, commanding the sheriff to levy
27 upon and sell the real and personal property that may be found within
28 the sheriff's county of an employer who has defaulted in the payment of
29 any sum determined to be due from such employer for the payment of such
30 sum together with interest, penalties, and the cost of executing the
31 warrant, and to return such warrant to the commissioner and to pay into
32 the fund the money collected by virtue thereof within sixty days after
33 the receipt of such warrant. The sheriff shall, within five days after
34 the receipt of the warrant, file with the clerk of the county a copy
35 thereof, and thereupon such clerk shall enter in the judgment docket the
36 name of the employer mentioned in the warrant and the amount of the
37 contribution, interest, and penalties for which the warrant is issued
38 and the date when such copy is filed. Thereupon the amount of such
39 warrant so docketed shall become a lien upon the title to and interest
40 in real property and chattels of the employer against whom the warrant
41 is issued in the same manner as a judgment duly docketed in the office
42 of such clerk. The sheriff shall then proceed upon the warrant in the
43 same manner, and with like effect, as that provided by law in respect to
44 executions issued against property upon judgments of a court of record,
45 and the sheriff shall be entitled to the same fees, which they may
46 collect in the same manner, for the sheriff's services in executing the
47 warrant.

48 (c) In the discretion of the commissioner, a warrant of like terms,
49 force, and effect may be issued and directed to any officer or employee
50 of the department of labor who may file a copy of such warrant with the
51 clerk of any county in the state, and thereupon each such clerk shall
52 docket it and it shall become a lien in the same manner and with the
53 same force and effect as hereinbefore provided with respect to a warrant
54 issued and directed to and filed by a sheriff; and in the execution
55 thereof such officer or employee shall have all the powers conferred by
56 law upon sheriffs, but they shall be entitled to no fee or compensation

in excess of the actual expenses paid in the performance of such duty. If a warrant is returned not satisfied in full, the commissioner shall have the same remedies to enforce the amount thereof as if the commissioner had recovered judgment for the same.

§ 3. This act shall take effect immediately.

PART W

Section 1. Subdivision 1 of section 141 of the labor law, as amended by chapter 642 of the laws of 1991, is amended to read as follows:

1. a. If the commissioner finds that an employer has violated any provision of this article or of a rule or regulation promulgated thereunder, the commissioner may by an order which shall describe particularly the nature of the violation, assess the employer a civil penalty of not more than ~~[one]~~ ten thousand dollars for the first such violation, at least two thousand but not more than ~~[two]~~ thirty thousand dollars for a second violation, and at least ten thousand but not more than ~~[three]~~ seventy-five thousand dollars for a third or subsequent violation. Such penalty shall be paid to the commissioner for deposit in the treasury of the state. In assessing the amount of the penalty, the commissioner shall give due consideration to the size of the employer's business, the good faith of the employer to believe that its conduct was in compliance with the law, the gravity of the violation, the history of previous violations and the failure to comply with record-keeping or other requirements, provided, however, that where such violation involves illegal employment during which a minor is seriously injured or dies, such penalty shall be ~~[treble the maximum penalty allowable under the law for such violation]~~ at least three thousand dollars but not more than thirty thousand dollars for the first such violation, at least six thousand but not more than ninety thousand dollars for the second violation, and at least thirty thousand dollars but not more than two hundred twenty-five thousand dollars for the third or subsequent violation. For the purposes of this subdivision, a minor shall be deemed to be seriously injured if such injury results in a permanent partial or permanent total disability as determined by the workers' compensation board.

b. The department may, at the discretion of the commissioner, reduce the penalty for a violation when such violation does not risk the safety or health of the employed minor. Reduction of the penalty may apply if an employer agrees to:

- (1) make immediate payment of reduced penalty;
- (2) have management complete a child labor compliance training prepared by the department;
- (3) provide its employees with child labor resources and information as specified and directed by the department;
- (4) submit a certified statement that the employer will only hire, employ or otherwise permit minors to work in positions as permitted by law, rule or regulation;
- (5) develop and submit a plan to prevent future child labor law violations; and
- (6) submit records over a subsequent twelve month period as required by the department to properly demonstrate that no additional violations of the child labor provisions have occurred.

§ 2. Section 145 of the labor law, as added by chapter 660 of the laws of 2005, is amended to read as follows:

§ 145. Criminal penalties. Any person who knowingly violates any provision of this article and any officer or agent of a corporation who knowingly permits the corporation to violate any such provisions shall be guilty of a ~~[misdemeanor]~~ felony, and upon conviction therefor shall be punished by a fine of not more than ~~[five hundred]~~ one thousand dollars or imprisonment for not more than ~~[sixty days]~~ one year or by both such fine and imprisonment for a first offense, or by a fine of not more than ~~[five]~~ ten thousand dollars or imprisonment for not more than ~~[one year]~~ two years, or by both such fine and imprisonment for a second or subsequent offense.

§ 3. The penal law is amended by adding a new section 125.10-a to read as follows:

§ 125.10-a Criminally negligent homicide of a child worker.

A person is guilty of criminally negligent homicide of a child worker, when acting as the employer of a child under the age of eighteen years old, with criminal negligence, such person causes the death of the child in the course of the employment. For the purposes of this section, the phrase "acting as the employer of a child", shall include, but not be limited to, instances where the defendant has employed a child in violation of section one hundred thirty, one hundred thirty-one, one hundred thirty-two, or one hundred thirty-three of the labor law.

Criminally negligent homicide of a child worker is a class D felony.

§ 4. The penal law is amended by adding a new section 260.12 to read as follows:

§ 260.12 Endangering the welfare of a child worker.

A person is guilty of criminally endangering the welfare of a child worker when such person knowingly employs a child in violation of section one hundred thirty, one hundred thirty-one, one hundred thirty-two, or one hundred thirty-three of the labor law, and in the course of that employment the child suffers physical injury, serious physical injury, or death.

Endangering the welfare of a child worker is a class E felony.

§ 5. This act shall take effect immediately.

PART X

Section 1. Sections 135, 137 and 139 of the labor law are REPEALED.

§ 2. The labor law is amended by adding a new section 135 to read as follows:

§ 135. Database for employment of minors; employee registration; minor employment certificates. 1. Creation of database. The department, in consultation with the department of education, shall create and maintain a database for the employment of minors. All information pertaining to any employer or minor that is submitted to the department under this section shall be confidential and shall not be accessible to the public. Nothing herein shall prevent the commissioner from sharing such information for civil or criminal law enforcement purposes.

2. Employer registration and renewal process. Any employer required to be registered under this section shall provide the department with the information set forth in this section, as well as any additional information that the department may require, in the form and manner prescribed by the department. The department may also set fees for employer registration and any renewal that may be required by the department under this section.

3. Employer information. Every employer that hires, employs, or otherwise permits any minor under the age of eighteen to work for the employ-

er within the state shall register in the database, in the form and manner prescribed by the department, the following information:

- (a) the name of the employer;
- (b) the email address of the employer;
- (c) any location of the employer's business operations within the state, including any location where a minor will be working;
- (d) the number and names of minors who are hired, employed, or otherwise permitted to work for the employer;
- (e) a certified statement from the employer that the employer is hiring, employing, or otherwise permitting minors to work only in positions for the employer as permitted by law, rule, or regulation in order to ensure their health, safety, and well-being; and
- (f) any other information deemed appropriate by the commissioner.

4. Employer recordkeeping. An employer that is required to be registered under this section shall, before employment begins, file at the place of the minor's employment such employment certificate or permit so that it may be readily accessible to any person authorized by law to examine such document. An employer's electronic access to such employment certificate or permit in the database shall meet the requirements of this subdivision.

5. Minor registration. Any minor under the age of eighteen who plans to work for an employer within the state shall complete a registration in the database for any employment certificate or permit. All information pertaining to the minor shall be confidential and shall not be accessible by the public. If the minor plans to work for a different employer, or for an employer in addition to the employer for which the minor first registered, the minor shall update the minor's registration. The minor shall be required to submit documentation for registration in the form and manner prescribed by the department.

6. Issuance of employment certificate or permit. Any employment certificate or permit issued pursuant to part one of article sixty-five of the education law shall be issued electronically within the database. Any application for an employment certificate or permit that is made pursuant to part one of article sixty-five of the education law shall be made by a minor on a form prescribed by the commissioner of education and approved by the department.

7. Regulations. The commissioner may prescribe regulations necessary to carry out the provisions of this section.

§ 3. Subdivision 3 of section 3215-a of the education law, as amended by chapter 1017 of the laws of 1971, is amended to read as follows:

3. Approval of form and contents. The commissioner of education shall prescribe or approve the form and contents of all certificates, permits, physical examination records, and schooling records required by part one of this article. The form of such certificates and permits shall also be subject to the approval of the [industrial] commissioner of labor. Any employment certificate or permit issued pursuant to this part shall be issued electronically within the database created and maintained by the department of labor, in consultation with the department, pursuant to section one hundred thirty-five of the labor law.

§ 4. This act shall take effect two years after it shall have become a law. Effective immediately, the addition, amendment and/or repeal of any rule or regulation necessary for the implementation of this act on its effective date are authorized to be made and completed on or before such date.

Section 1. Paragraphs (a), (b) and (c) of subdivision 1 and paragraphs (a), (b) and (c) of subdivision 2 of section 26 of the veterans' services law are amended to read as follows:

(a) A parent, ~~[identified in 10 USC 1126 as a gold star parent,]~~ spouse, or minor child of a ~~[veteran]~~ service member who ~~[heretofore has died or a parent of a veteran dying hereafter]~~ died while on active duty, shall upon application to the state commissioner, be paid an annual annuity out of the treasury of the state for the sum of five hundred dollars for such term as such parent, spouse, or minor child shall be entitled thereto under the provisions of this article. Commencing in the year two thousand nineteen, the amount of any annuity payable under this section shall be the same amount as the annuity payable in the preceding year plus a percentage adjustment equal to the annual percentage increase, if any, for compensation and pension benefits administered by the United States Department of Veterans Affairs in the previous year. Such percentage increase shall be rounded up to the next highest one-tenth of one percent and shall not be less than one percent nor more than four percent. The commissioner of veterans' services, not later than February first of each year, shall publish by any reasonable means, including but not limited to posting on the department's website, the amount of the annuity as adjusted payable under this section. The term "parent" for the purposes of this section includes mother, father, step-mother, stepfather, mother through adoption and father through adoption. The term "spouse" for the purposes of this section includes non-remarried spouses and remarried spouses. The term "minor child" for the purposes of this section includes minor biological, step, or adopted children, through the day before the child's eighteenth birthday.

(b) The entitlement of any parent, spouse, or minor child to receive the annuity provided by paragraph (a) of this subdivision shall terminate upon ~~[his or her]~~ such parent's, spouse's, or minor child's death or upon ~~[his or her]~~ such parent's, spouse's, or minor child's ceasing to continue to be a resident of and domiciled in the state of New York, but such entitlement may be reinstated upon application to the state commissioner, if such parent, spouse, or minor child shall thereafter resume ~~[his or her]~~ such parent's, spouse's, or minor child's residence and domicile in the state.

(c) The effective date of an award of the annuity to a parent, spouse, or minor child shall be the day after the date of death of the veteran if the application therefor is received within one year from date of death. If the application is received after the expiration of the first year following the date of the death of the veteran, the effective date of an award of the annuity to a parent, spouse, or minor child shall be the date of receipt of the application by the state commissioner. If the application is denied but is granted at a later date upon an application for reconsideration based upon new evidence, the effective date of the award of the annuity to a parent, spouse, or minor child shall be the date of the receipt of the application for reconsideration by the state commissioner.

(a) Any gold star parent, spouse, or minor child, who is the parent, spouse, or minor child of a deceased veteran, and who is a resident of and domiciled in the state of New York, shall make application to the department.

(b) No entitlement shall be paid under this section to or for a gold star parent, spouse, or minor child who is in prison in a federal, state, or local penal institution as a result of conviction of a felony or misdemeanor for any part of the period beginning sixty-one days after

1 ~~[his or her]~~ such parent's, spouse's, or minor child's imprisonment
2 begins and ending with ~~[his or her]~~ such parent's, spouse's, or minor
3 child's release.

4 (c) Where one or more gold star parents or minor children are disqual-
5 ified for the annuity for a period under paragraph (b) of this subdivi-
6 sion, the state commissioner shall pay the shares of such disqualified
7 parents to the other parents or minor children, if they meet the quali-
8 fications on their own.

9 § 2. This act shall take effect immediately.

10

PART Z

11 Section 1. Subdivision 1 of section 297 of the executive law, as
12 amended by chapter 304 of the laws of 2021, is amended to read as
13 follows:

14 1. Any person claiming to be aggrieved by an unlawful discriminatory
15 practice may, by ~~[himself or herself]~~ such person or ~~[his or her]~~ such
16 person's attorney-at-law, make, sign and file with the division a
17 complaint in writing under oath or by declaration which shall state the
18 name and address of the person alleged to have committed the unlawful
19 discriminatory practice complained of and which shall set forth the
20 particulars thereof and contain such other information as may be
21 required by the division. The division may designate a required form
22 and procedures for making, signing, and filing such complaint. The
23 commissioner of labor or the attorney general, or the executive director
24 of the justice center for the protection of people with special needs,
25 or the division on its own motion may, in like manner, make, sign and
26 file such complaint. In connection with the filing of such complaint,
27 the attorney general is authorized to take proof, issue subpoenas and
28 administer oaths in the manner provided in the civil practice law and
29 rules. Any employer whose employees, or some of them, refuse or threaten
30 to refuse to cooperate with the provisions of this article, may file
31 with the division a verified complaint asking for assistance by concil-
32 iation or other remedial action.

33 § 2. Paragraph c of subdivision 3 of section 297 of the executive law,
34 as amended by chapter 166 of the laws of 2000, is amended to read as
35 follows:

36 c. If the division finds that noticing the complaint for hearing would
37 be undesirable, the division may, in its unreviewable discretion, at any
38 time prior to a hearing before a hearing examiner, dismiss the complaint
39 on the grounds of administrative convenience. ~~[However, in cases of~~
40 ~~housing discrimination only, an administrative convenience dismissal~~
41 ~~will not be rendered without the consent of the complainant.]~~ The divi-
42 sion may, subject to judicial review, dismiss the complaint on the
43 grounds of untimeliness if the complaint is untimely or on the grounds
44 that the election of remedies is annulled.

45 § 3. The state finance law is amended by adding a new section 80-b to
46 read as follows:

47 § 80-b. Discrimination complaints escrow fund. 1. Notwithstanding any
48 other provision of law, rule, regulation, or practice to the contrary,
49 there is hereby established in the sole custody of the division of human
50 rights commissioner a trust and agency fund, to be known as the
51 "discrimination complaints escrow fund" which shall be available without
52 fiscal year limitation.

53 2. The discrimination complaints escrow fund shall consist of concil-
54 iation funds, settlement funds, and any other monetary awards the divi-

sion of human rights receives from discrimination complaint respondents for the sole purpose of compensating the corresponding complainants.

3. The division of human rights commissioner, or such commissioner's designee, shall only expend discrimination complaints escrow fund monies for the purposes of compensating a complainant whose conciliation, settlement, or award monies were deposited into the escrow fund.

§ 4. Section 295 of the executive law is amended by adding a new subdivision 19 to read as follows:

19. To manage the discrimination complaints escrow fund, including but not limited to authorizing the receipt of funds and payment of monies in accordance with section eighty-b of the state finance law.

§ 5. This act shall take effect immediately; provided, however, that sections three and four of this act shall take effect on the thirtieth day after it shall have become a law.

PART AA

Section 1. On or before September 1, 2025, the commissioner of education shall submit a report to the governor, the speaker of the assembly, and the temporary president of the senate providing information regarding usage, budgeting, staffing, assets, and functions of the New York state museum in a form and manner as determined by the director of the budget. Such report shall include but not be limited to the following information:

1. Annual statistics for state fiscal years 2004-05 through 2024-25 for the following categories:

- (a) visitorship by month;
- (b) philanthropic donations, either monetary or in-kind;
- (c) school student visitorship;
- (d) marketing, advertising, and promotional expenditures;
- (e) staffing levels and expenditures for each office of the museum;
- (f) capital expenditures;
- (g) museum revenue from sources other than state aid; and
- (h) balance of total revenues and operating expenses;

2. A summary of current agreements with other cultural institutions regarding loan or exchange of collections;

3. Current collections on display and length of time on display;

4. Current collections in possession of the museum but not on display;

5. New collections scheduled to go on display in the next five years;

6. A listing of special events, exhibitions, tours, limited or traveling displays, and other events not included in information regarding normal displayed collections over the prior five years;

7. A listing of any ancillary services provided at the museum, including but not limited to food service, retail, or walking tours; and

8. Usage over the prior five years of the state museum collection by federal agencies, New York state agencies, local governments, and other governmental entities, whether for display or research purposes.

§ 2. On or before September 1, 2026 and annually thereafter, the commissioner shall submit a report to the governor, the speaker of the assembly, and the temporary president of the senate including updated information from the prior state fiscal year supplementing the information provided in the report required by section one of this act.

§ 3. This act shall take effect immediately.

§ 2. Severability clause. If any clause, sentence, paragraph, subdivision, section or part of this act shall be adjudged by any court of competent jurisdiction to be invalid, such judgment shall not affect,

1 impair, or invalidate the remainder thereof, but shall be confined in
2 its operation to the clause, sentence, paragraph, subdivision, section
3 or part thereof directly involved in the controversy in which such judg-
4 ment shall have been rendered. It is hereby declared to be the intent of
5 the legislature that this act would have been enacted even if such
6 invalid provisions had not been included herein.

7 § 3. This act shall take effect immediately provided, however, that
8 the applicable effective date of Parts A through AA of this act shall be
9 as specifically set forth in the last section of such Parts.